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Loudoun County Board of Supervisors, Business Meeting, Tuesday, February 3, 2026

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Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 3h 55m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8107>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8107>

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[00:07:41] One, two, three, four, five, who are we, so wait a minute, good afternoon, good evening supervisors, good evening staff, good evening Loudon, I'd like to call to order the February 3rd, 2026 Loudoun County Board of Supervisors business meeting, this room has a hearing loop, if you need hearing assistance, please set your hearing aid to the telecom mode, if you need a headset, we have those available as well, please see the clerk to request one,

[00:08:17] Before I hand it to Supervisor Sylvia Glass for the words of inspiration and Pledge of Allegiance, I'm going to take a point of personal privilege and say happy birthday, Ashawn Randall. You are the light of my life. You made me a mom. I love you so much.

[00:08:34] I miss you so much. And you should call your mother more, sweetie pie. Ms. Glass. Thank you, Chair. I would like to say one of the many prayers that Martin Luther King had prayed during many of his sermons or in any of his speaking engagements.

[00:09:03] And it goes, O God, make us willing to do your will, come what may, increase the number of persons of goodwill and moral sensitivity, give us renewed confidence in nonviolence, and the way of love is taught by Christ. Amen.

[00:09:19] I pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:09:37] At this time, I do not believe we have any additions or deletions to the agenda. I do not have any additions or deletions to the agenda. Does anybody else? Seeing Mr. Turner, I'm going to go ask Mr. Hempstead a question.

[00:09:53] Would you do me a favor and read the consent agenda for me? Thank you. Very well, Madam Chair. They can propose consent agendas as follows. Item R1, Proclamation to Recognize Black History Month in Loudoun County. Item 1A, Loudoun County Invasive Plant Species Management Program Guidelines for County Managed Lands.

[00:10:14] Item 2A, Appointments and Confirmations. And item 3, Administrative Items Report of February 3rd, 2026. Is there a motion to move the adoption of the proposed consent agenda? So moved and seconded and moved by Supervisor Umstad and seconded by Supervisor Glass.

[00:10:33] Any discussion? Hearing none, all those in favor, please say aye. Aye. Any opposed? That motion will pass 6-0-3. 6-0-3. With Mr. Letourneau, Mr. Sainz, and Mr. Kirchner being off the dais today.

[00:10:57] Okay, my organizational updates are as follows. So I have had, I don't know, numerous calls with VDOT and Dominion, and I've talked to the person from Novak about first the impending snowstorm and then the snowstorm after that.

[00:11:14] We are all aware that the response to the snowstorm was less than we would have hoped for, and I think VDOT is aware of that as well. I do want to remind everybody that VDOT is a state agency and not a county agency, but we are in close contact with VDOT, and we have had lots of conversations, And Mr. Vice Chair Turner, Ms. Bricksman, and myself have all decided that it would be a great idea for VDOT, as well as some constituents' request, for VDOT to come to us at some point

[00:11:51] and just do a post-mortem on what would happen with the storm. Not so much to blame, but just find out what the holes were, what happened, because this It probably should have gone smoother, and so let's figure out how to make sure it goes, it's smoother for the next snowstorm.

[00:12:08] I also want to say that I participated in the NACO Mid-Size County meeting again. We reviewed our goals that we will discuss at the Ledge Conference, which I will be attending on February 21st, I think we're going.

[00:12:25] And again, they are housing and health care. I want to say one more time that I cannot go to RAC, the Rural Action Caucus. I used to go to RAC because I am a vice chair of the midsize caucus. Mr. Crony has agreed to go to RAC, so I really, really appreciate that.

[00:12:44] Usually Mr. Sains, and I think Supervisor Glass goes to Luck. The RAC is a county that is 250,000 or less, and Luck is a county that is, which is a large urban county, is 500,000 or more.

[00:13:01] We have been in this bubble between the two, and so the midsize county caucus is very new. This is only our second meeting, but we didn't fall into rack or luck, and so I was one of the people who really pushed to have the midsize county caucus, and the answer was yes, and how about you come be one of our vice chairs of that?

[00:13:20] So I'll be doing that. did attend the transit meeting in Richmond with the NOVA delegation last night. I was in Richmond last night. It was chaired by Senator Roan, who chaired the meeting wonderfully.

[00:13:39] Metro was there. Randy Clark spoke for Metro. I was there for NVRTA. Monica Backman, who who is the executive of NVRTA, Kate Mathias for NVTC. The main discussion was transit funding.

[00:13:55] Now, I will say Randy Clark spoke about DMV moves specifically, so he's talked about transit funding as it pertains to Northern Virginia. But the discussion in general was transit funding. I will admit that I'm not, even as I ask all the questions and I sit here today, I'm not quite clear how they're going to divide up a transit funding bill because DMV moved.

[00:14:21] The request was that the revenue for Metro was raised by Metro's jurisdictions. And the transit funding bill, from what I understand, is a bill that's going to be Commonwealth-wide. So I don't know how they're going to do that.

[00:14:37] We all go back down to Richmond on Thursday. And so maybe I'll try to get more clarity on how they're going to parse out these bills. Senator Lamont Bagby is head of transportation on the Senate side. Delegate Kelly Delaney on the House side. So I'll try to get with them and try to ask some of these questions just so I understand how the bills will be weeded through.

[00:14:59] I will say that there was one thing that I was – I caught this. Randy Clark, who is the executive over Metro, talked about how he believed the federal government could give a bigger share of money through our PREA funds.

[00:15:17] The PREA funds have not been adjusted for inflation since they were put in place some, I don't know, 20 years ago or something like that. They've never been adjusted for inflation. I have been talking about this for 10 years, and I will say when I first started talking about this, it was, it will never happen, it will never happen, it will never happen.

[00:15:33] But now we're having that discussion about more money being put into Metro because Metro moves the federal government workforce, and so I was really pleased to see that discussion happening, and I think that when we, supervisors, when we get to our ledge program at the federal level, we and all the other Nova Compact jurisdictions, which all the counties in Northern Virginia with the exception of Prince William County as a Nova Compact jurisdiction as are many of the incorporated cities. I think that this is something we really, really, really want

[00:16:09] to talk about with Senator Kane, with Senator Warner. So supervisors, let's have this discussion before we go to NACO, before we go to the Hill, to put this on the agenda for the Hill to talk to Congressman Supermaniam, Senators Reed, Senator Warner, and anybody else that we have in the past in the Northern Virginia jurisdiction, Congressman Beyer, Congressman Vindman. Who am I missing? Congressman Walkinshaw. Am I missing anybody else? Is that who it

[00:16:44] is? Yeah, because if we can get this done, then it would be a huge thing to get more money from the federal government. So we'll all be back down there on Thursday. I'll back down to Richmond on Thursday going through the entire Ledge program, our entire Ledge program which we'll talk about later on.

[00:17:03] My voice for a cause this evening, I'm very excited about it, my voice for a cause this evening is the Loudon-Douglas Alumni Association. The Loudon-Douglas Alumni Association is a nonprofit founded in 1985 consisting of a group of dedicated former students of Douglas High School and their descendants. The Loudon Douglas alumni provide financial aid and scholarship to young people who

desire to pursue education beyond high school, at a trade school, at a college or university. Since their creation

[00:17:38] in 1985, the Loudon Douglas Association has provided more than \$300,000 in scholarships deserving young people throughout the county and I know I have talked about Douglas High School and the Douglas High School story at some length and the fact that not only that these amazing human beings fund and purchase and then build their own high school that then they were later forced to sell for a dollar when they finished they turned around and gave back to the community by raising money for their descendants. And so it is a phenomenal story from start to finish.

[00:18:18] So with us today is the president of the Lyle and Douglas alumni, Charles Avery, and he's going to stay for the Black History Resolution as well tonight. So, Mr. Avery, let's start with what's Douglas alumni's plans for celebrating Black History Month?

[00:18:35] Thank you, first of all, Chair Ronan, for just having me here and being able to showcase at this meeting and to all the supervisors. This month, we're really excited about our collaboration with the Loudoun County Parks and Recreation.

[00:18:51] They're supporting the Black History Month. They do this every year and they'll be having a celebration at Douglas on February 21st with music and food and a whole host of other things on that day. LDA will also collaborate with Visit Loudoun, which we're really excited about.

[00:19:12] They have a program to showcase historical sites in Loudoun County. And next Wednesday we'll be meeting with, we'll be hosting Fox 5 at Douglas to showcase the historic Douglas High School and the history and development of LDA, which you shared around and gave a very succinct and brief summary about our development.

[00:19:36] LDA will convene a meeting, a long overdue meeting, I should say to plan for the display of historical items and appreciation of veterans who attended Douglas High School. I might add as a side note that as the story goes, some students left Douglas, went to the military, and then came back and finished their education at Douglas.

[00:19:57] Really excited about that part of history. LDA will also distribute quarterly newsletters to Loudoun County and other neighboring churches to showcase the activity of LDAA, to showcase that to the community.

[00:20:14] LDAA finally will collaborate with the Edwin Washington Society to identify African-Americans who signed petitions to the government and to the school system supporting black citizens and the issues impacting black citizens.

[00:20:30] We're gonna do all of that in February. - That's a busy month, that is a busy month, but if anyone can do it, it's the Douglas alumni. - So you guys offer scholarships to graduating seniors. You talk about that scholarship program just a little bit, what type of scholarships, and are all seniors eligible for it?

[00:20:45] Or is it Douglas alumni descendants, or how does that work? - It's, we started as descendants, but it's all seniors in Loudoun County. We're excited about that. So there's two types of scholarships that we offer. That one, we, in the past, we've offered some 16 scholarships annually to seniors going on to higher education.

[00:21:08] And secondly, started just last year. We started accepting scholarships for a collaboration with the National Juneteenth Foundation from seniors who write about the impact of June 10th and the progress of black Americans since 1865.

[00:21:28] Wonderful. So we talked about just preserving black history. And, you know, and that's one of the Douglas alumni's goals. So why is that? I mean, I've talked a lot about the fact that so many black historians in Loudoun County, I don't think their voices were always heard.

[00:21:50] And when the people don't tell their own story, the story's not always told correctly. But when I think of the Maddie Lassiters, the Elaine Thompsons, Gertrude Evans, Mary Randolphs, Alvin Dotson, Those are all people who are historians for African American history and for history in general in Loudoun County.

[00:22:10] Tell me why preserving that history and preserving the history of Douglas is so important, especially this month, all the time, but especially this month. Well, I know the majority of the folks that you just mentioned. Yeah, you do. I know a lot of their history, but other people do not.

[00:22:27] That's the importance, that's what legacy is all about, sharing that information to those who are here and those who will be here, sharing it with the next generation. So I'm real excited about, and the story of Douglas High School and how it got developed, it's a great story.

[00:22:46] It's a story that needs to be told and we're excited about, in fact, there's a documentary that's being developed as we speak and it will be finished this year to tell that story and what has happened in Loudoun County. - That is so exciting. - Yeah, I like to say that the Black history, Loudoun County history is a Black history.

[00:23:06] - Yeah. - And so it's a story that needs to be told. - Right. - And so we're glad we're at the forefront of being able to tell that story. - And lastly, where can people learn more about the Loudoun County Douglas Alumni Association, whether they want to give to the scholarship fund or just learn more about?

[00:23:22] Where would they go to learn that? - Well, let me just say that we are at Douglas, We staffed what we call the Douglas Room at Douglas High School three times a week. It's kind of fallen off since the weather has kept us home a little bit.

[00:23:37] But folks will be there. You can walk to Douglas and talk to staff who are there. But there's a website, LDAA for the alumni info at LDAA1941.org. 1941, of course, is when the year the school was built.

[00:23:55] And then there's another, a second website called president@1941.org. Those are the places you can reach out to, to reach out to staff at the L. L. Douglas Alumni Association.

[00:24:10] And I will make sure I send both of those out in my newsletter. Please. I'll make sure, yeah. Mr. Avery, one question that's not in my paper. When was your graduation year? I graduated 1968, a proud member of the class of 1968, the last class to graduate from Douglas High School.

[00:24:27] I think you all, well, you all know how I feel about you, and I cannot, and I will say, if I call you, you answer. If I need you, you come. Douglas Alumni is a phenomenal organization, but you are a very special person as well, Mr. Avery.

[00:24:43] So thank you for all that you do in Loudoun County and for the history. We appreciate you so much. thank you very much. Mr. Avery is going to hang around for the Black History Resolution just a little

later on. Mr. Hemstreet, oh I do have one announcement. The Loudoun County Public School Budget Presentation to the Board of Supervisors will be held on Monday. It will be in the Dulles Room at 5 p.m. So everyone let's remember that Monday 5 p.m. Dulles Room LCPS presentation to us.

[00:25:19] Mr. Hemstreet, do you have any comments this evening? Thank you, Madam Chair. I actually have five comments for this evening. The first is that Loudoun County's annual survey of youth and parents is currently underway. The Board's Advisory Commission on Youth conducts a survey every year to help the county make informed decisions about programs and services designed to support young people in our community.

[00:25:40] The survey is intended for middle and high school age students and their parents or guardians. It takes about 10 minutes to complete. The survey deadline is February 27th. Details and a link to the survey may be found at [loudon.gov slash use survey](https://loudon.gov/use-survey). Second, the current round of applications for the Loudoun County Invasive Plant Species Management Program is open through February 6, 2026.

[00:26:03] Eligible landowners may apply for funding to remove invasive plant species from their property. The program also offers technical guidance and educational materials to raise awareness and encourage best practices for invasive plant removal. More information is online at [loudon.gov slash invasive plants](https://loudon.gov/invasive-plants).

[00:26:19] Third, the Loudoun Workforce Resource Center and Loudoun Extension Services are hosting a virtual three-part financial resilience series this month. The series will focus on building healthy financial habits to help face challenging times. Interested attendees may choose to attend one, two, or all three sessions.

[00:26:37] Each session is free and will be presented by a financial literacy educator. Anyone interested in attending may register at [loudon.gov slash wrworkshops](https://loudon.gov/wrcworkshops). Fourth, the Launch Loudoun team for Loudoun Economic Development is accepting applications for its technical services pilot program.

[00:26:53] The program is designed to address one of the biggest challenges facing small businesses, access to affordable, high-quality services such as sales and marketing, HR, and finances. The program matches small local businesses with expert service providers at no cost for up to 10 hours.

[00:27:09] Details, including a link to apply, may be found at loudounbizmatch.com. And then finally, as you are aware, the county plans to begin enforcing our snow and ice removal ordinance this week as part of an effort with Loudoun County Public Schools to provide a safe environment for students who walk to school and who also need to walk to a bus stop.

[00:27:31] We are alerting the public of our intentions and we continue to encourage everyone to continue to work together to bring neighborhoods into compliance with snow and ice removal requirements prior to our enforcement activity. Details about those requirements can be found at loudon.gov/shoveling.

[00:27:51] Also at this link and also available is for anyone or for those who cannot shovel or clear their sidewalk is information to Loudon Cares, who partners with the county to provide volunteers to help clear your sidewalk if you are physically unable to do so.

[00:28:09] Additionally, the county is working with Loudoun County Public Schools to clear a small number of critical sidewalks in some school walk zones. In this situation, the county is in a supporting

role as LCPS is the lead in determining where our assistance is critically needed.

[00:28:30] Those are my comments this evening, Chair Randall. - Thank you, Mr. Hemstreet, I appreciate that. Okay, we're going to, I think, is Jonathan on the line? Mr. Freeman on the line? 'Cause we're gonna go on and do our alleged program the night. We do have two items, two motions on the dais for the Ledge program, one for myself and one for Ms. Brixman. Mr. Freeman, can you see, there you, okay. All right, wonderful.

[00:29:03] Mr. Freeman, hello, how are you? It was good to see you last night. We'll see you again on Thursday. Thank you for everything you're doing down there. I know it's been a tough, tough session for us. You're going to talk about that a little bit right now. Let's do an update from you, and then we're going to ask questions and do motions, of which we have, again, as I said, two motions on the dais right now.

[00:29:26] Well, good afternoon, Madam Chair, members of the board. So, crossover, if you can believe it, is just about two weeks away, and so this session is moving, and so are a couple of our bills. I'll start off with the Home Ownership Grant Program that is carried by Senator Perry and Delegate Martinez, as well as Delegate Thomas. So, yesterday, we testified beside Senator Perry on her own ownership grants program bill. We do want to note that there has been a lot of

[00:30:01] opposition that has come up over the grant program, but we were able to mitigate a lot of those concerns, one of which was the qualifications for the program. We were able to convey that, you know, in our program, to qualify, you have to be between 30% and 70% AMI, which is about for us 49,000 to about 114,000 a year for our employees. And so I think that mitigated a lot of the concerns that we were hearing from the Senate Local Government Committee yesterday. And so our bill did get out of committee 10-4. On the House side, that bill has actually already passed the

[00:30:40] House. Martinez went ahead and signed on to HB 164, which is the same version as our Senate bill. And so, again, that's already passed the House. So, that bill is moving very quickly and has become a popular tool for local governments to talk about as we talk about affordable housing this session. Moving on to Oak Hill. Oak Hill has not come up in Senate Finance as of yet, But the bill did come up in House Agriculture Committee last week.

[00:31:14] Delegate Lopez's bill was incorporated into Delegate McCullough's bill. Delegate McCullough's bill's number is HB 500. Delegate McCullough did a wonderful job presenting on that bill, and it was re-referred to appropriations, which was not a surprise to us because this is an acquisition bill.

[00:31:35] And so we're continuing to hear good things about the bill, but we're continuing to fight as if we are in a fight for our life, if you will. Unfortunately, moving on to local anti-rent gouging, that both bills have been sent to the Housing Commission to study.

[00:31:54] You may remember in previous years or in one of the previous sessions, rather, this bill was sent to the Housing Commission to study before. but unfortunately it did not get any resources for the housing commission to actually study it.

[00:32:12] So what we ended up getting was a morning of presentations on what anti-rent gouging would look like. But from there, we did not get the housing commission did not gather any data or make any recommendations for any future legislation. And so what we've done is we've talked to the Virginia association of counties, which did also testify and support alongside us on this bill. We've talked to the Virginia Poverty Law Center. We've talked to New Virginia Majority. We've talked to our counterparts in

Northern Virginia. And so, what needs to happen from here is that we need to make sure that we all come together and talk to the Housing Commission

[00:32:50] after legislative session is over to ensure that they actually incorporate resources to study local anti-rent gouging and actually make recommendations for what a bill would look like in a future session, hopefully in a 2027 legislative session.

[00:33:08] Moving on to the authority to consider power, Delegate Singh and Delegate Srinivasan's bill. Delegate Singh's bill was unfortunately continued to 2027. Our prestigious county attorney, Leo Rogers, eloquently defended that bill.

[00:33:28] But unfortunately, you know, I think that it's getting caught up in a theme that we are seeing, and I'll get to that in a second, about data center bills as a whole this year. And so, Senator Trinnovasin's bill has not been heard yet, but we expect it to come up in Senate Commerce and Labor next week.

[00:33:48] Madam Chair, I'll stop there for a second before I get to the other attachments. Okay. So let's just do a couple of questions about what he's talked about already. We went through the attachments. Yes, do you have any questions? Okay.

[00:34:05] I do have, well, yeah. So the anti-rent gouging bills, is it possible that those, okay, the bills we put forward for around rental assistance or rental anything was, one, for people to receive the, for people who are doing a lease or rental, to receive that lease or rental in their language that they can read if it is one of the top five languages spoken in Virginia.

[00:34:39] And then the other one we did was, help me out, Supervisor, who was one more? Oh, that a person could not have their lease raised within the same lease year, and so they couldn't come back and have, you know, you sign the lease in March, and then in July your rent goes up \$50, and then in September it goes up another \$100.

[00:35:02] Those two bills kind of go together because a lot of times that's happening because people cannot read their lease. Those bills both died. Is it possible that all of the rental bills are kind of being just called rent gouging bills and kind of grouped together and being put into the housing, sent to a housing study?

[00:35:25] Because if that is the case, that's unfortunate. But again, it goes to we have now a job to do, which is to explain why our bill is different and differentiate our bills from some of the other bills. I was talking to somebody last night, and they kind of went, yeah, they all just went together.

[00:35:43] So do you think, because I don't believe that the bills we're putting forward are anything but completely reasonable, but this is the third year we can't get them out. And when we're talking about affordability on homes, the number one way to help people stay in their homes is to help people stay in the homes they're in right now.

[00:36:01] So do you think that maybe they're just getting all caught up together, Jonathan? What I think is happening on local anti-rent gouging is that you have a thought, a school of thought down in Richmond that the issue is housing supply.

[00:36:20] And so incorporating into the code any, you know, mechanisms to control the increase on rent or, you know, anything of the sort, they believe that it will actually hurt housing in some kind of way in terms of development.

[00:36:41] You may not have as many developers that want to come to Virginia and increase the housing supply and build in the Commonwealth. And so that is kind of what we're hearing on those bills. There was a there were a couple of 18 seconds left, but our bills are not our bills are not anti rent gouging bills in that way.

[00:37:02] I mean, to say that, you know, with the person signs a lease and what they sign in that lease years, what they pay in that lease year, that their rent doesn't go up inside of a year. That's not that's that I don't as I talk to people, they think that's reasonable.

[00:37:17] So you think that they're all just kind of getting wrapped up in the same language, and they're all just being called rent gouging bills and all being pushed off together? Well, I think folks just think that if you increase the housing supply, then you won't have this year-over-year substantial increase in rent.

[00:37:36] And so the focus is increasing housing supply in Richmond. Okay. All right. All right. Continue, please. Oh, did you have a question? I did. Wait, was your light on already? was not so i'm i'm going to give you this one you don't have to i'm going to give you this one uh well um i don't quite know how to ask this mr freeman but i'm going to ask it anyway um

[00:38:01] my impression uh of this session is that stated positions that the county um took um i let me ask it open open-ended are these bills dying and first of all it seems to be that they are dying at an inordinately high rate, but are they dying as a result of a larger environment within the legislature on these broad issues? That is kind of, that is, the broad issue is counter to our

[00:38:37] specific requests in the bill, or are they dying because of our delegation is not championing, they have changed their minds and are not championing these, those positions? I know that's a delicate question, but I'm trying to figure out what the atmospherics are here.

[00:38:56] I understand, particularly in data centers and housing, there's probably a larger movement about, and these bills can get caught up tactically in a larger strategic position. But I'm also hearing rumors about delegates that are specifically not supporting legislation that we want it supported.

[00:39:16] Well, I would say that, first of all, our delegation has done a great job at assisting us with these legislative initiatives, as we've seen. You know, they, on our initiatives, all but except the anti-rent gouging bill, which was really headed by statewide housing advocates.

[00:39:40] The rest of our initiatives are carried by our delegation members, and they've been very helpful. I think that the issue that we're running into is that we, you know, we just had an election. We just had a lot of turnover.

[00:39:58] We have a new administration, and so I think folks are just trying to ensure that the right policies are passed. Okay, that's a good answer. Thank you very much. Okay, do you want to continue? Yes. So, thank you, Vice Chair Turner, for that question, because it actually goes into my next set of remarks regarding data center bills.

[00:40:25] So, I want to highlight a few data center bills that have not made it this session. HB 166, related to noise ordinances, that's related to noise coming from data centers. HB 370, local authority on requiring water consumption and zoning ordinance.

[00:40:44] HB 607, Department of Environmental Quality, study of air pollution. HB 824, data centers, energy generation and storage, which would have established a work group to look at that. HB 954,

Department of Energy, to study geothermal energy for the SEC, proceeding to establish geothermal energy requirements for high energy users.

[00:41:11] All those bills have not made it. And so I think what we are seeing down here this session, again, is ensuring that as we amend the code, that things are passed with restraint and that there likely is going to be a large budget discussion as we look at some of these different entities and industries that some of these policies, if passed, would have affected.

[00:41:41] And so, I also want to highlight one bill that we've been following, of course, that is moving. We're doing our best to—we're doing our best to fight it, but the Faith in Housing Act.

[00:41:58] Delegate Cole's bill, HB 1279, last Friday was heard in subcommittee that there was a reenactment clause placed on that bill, which in a reenactment clause means that it needs to pass legislative session twice before it becomes law. Senator Carol Foy's bill, SB 367, was incorporated into SB 388, which is patron by the chair of Senate local government, Senator McPike, that passed Senate local government with no reenactment clause. And so, I'm highlighting that because if SB 388 passes the Senate with no reenactment clause,

[00:42:37] hb 1279 passes the house with a reenactment clause what we're going to have is at later down the road after crossover the house is going to insist on their version the senate will insist on their version and then we're going to end up in conference and to be clear that faith and housing bill is a bill that takes away local land use control as it pertains to religious organizations yes on property yes it takes away local so it's exactly what we have been talking about what i have been talking about for months and here we are yes so that is something to keep

[00:43:12] on our minds as we come down to local government day uh on february 5th and i know that vaco will definitely uh highlight uh all of these things that their program that they have at noon uh on on february 5th i do also want to highlight another uh bill uh that received a lot of concerns which related to local governing bodies and school division budgets and the funding levels.

[00:43:40] And so, essentially, this bill would have required local governing bodies to pass a needs-based budget prepared and approved by the school board and submitted by the division superintendent. You all would have needed to pass that budget at the funding level you received it at or better.

[00:43:58] That bill has been changed into a study, so that bill is no longer in its current form. Currently, it's moving through the House as a joint subcommittee on elementary and secondary education funding for them to study that and then come back with recommendations November 1st of this year.

[00:44:19] So I just wanted to highlight some of those bills, as I know we've heard a lot of conversation about a lot of those pieces of legislation. Okay, before we go to the motions that are under dais, I will go to questions. Ms. Bricks, do you have a question? I do. Thank you, Madam Chair, and thank you, Mr. Freeman, for all of your hard work.

[00:44:37] Sounds like things have really been popping down there. On the faith and housing bill, it's my understanding that at least one of them says that you can't, you can't, I guess, deny an application at 20 units per acre as long as it is at the same density or less than the nearby residential density. Do both bills say that or just one of them? I would have to double check that. That's a good question. I actually have not heard that

[00:45:17] question asked. I think the focus has been simply on the fact that if a religious organization that owns property within your locality and they want to build housing, that your planning and zoning policies do not apply. Right, right. Yeah, I think there are, I'm not saying I'm in favor of it, but I think, I see you.

[00:45:37] I think there are some caveats in there that say you have to match the density that's nearby or within 500 feet or something like that. So in other words, it wouldn't necessarily allow a religious organization to go buy 40 acres in Western Loudoun and put down 20 units per acre.

[00:45:59] But my question is, do both bills say that? So maybe we can discuss it when I'm down there, or I can go back and read both of them. And then it's my understanding that there was a no parking minimums bill, and I think there was an amendment to the no parking minimums that said, I think it was Senator Salim's bill that said you can only do it around, like, say, the Metro or something like that.

[00:46:32] Is that completely dead? I understand it died yesterday, but I don't know if there might be one maybe in the House. I don't believe that I've seen one in the House, but I know that the Senate version, yes, that did fail on a tied vote yesterday.

[00:46:49] That's right. Okay. Yesterday. Okay. Okay. I think those are all my questions. you very much we'll see you tomorrow on thursday mr crony uh thank you chair randall and thank you mr freeman thanks for all that you do down there um so i just want to go back to the data center bills the authority to consider power did that get defeated that got thrown out the house version did okay um what about perry's bill about uh electric utilities um that the authority to

[00:47:24] delay as far as them you know dominion having that authority to delay serving a high load user it's hb it's sb 423 um uh let me see i do i will say this um about the the authority to delay um and i can pass this to our county attorney if um if i get anything wrong but i do believe that um

[00:48:00] There is at least a school of thought that believes that that authority already exists. I will say that for the Senator Perry bill that you are referring to, that will likely be heard next week.

[00:48:15] So, that hasn't received a committee hearing yet, but I'll pass it to County Attorney Rogers if there's anything that he would like to opine on. Yeah, I think that there's a school of thought, and Dominion certainly believes it, that they can delay the provision of power through their electrical service agreements.

[00:48:34] Okay, okay. I'm sorry, point of clarification, if I may. Well, okay. Based on what Mr. Quinn, yeah, sure. When you say they, I guess, when you say they can delay, it was my understanding that Mr. Freeman was saying that there's a school of thought that local authorities already have the authority to delay.

[00:49:01] That's not... That's not... No, I was referring to Dominion. Dominion has authority to delay projects if they don't have existing capacity. Okay, thank you. Yeah, thank you. So, what are the themes? You mentioned that there are some themes this General Assembly with data center bills. So, what would you say are the major themes?

[00:49:23] I would just say that, you know, I wanted to highlight those data center bills that have been defeated because it really encompasses many different areas as it pertains to data centers.

[00:49:39] So, again, energy, air pollution, water consumption, noise, those different bills that I highlighted, they were defeated. And so, you know, I don't want to draw out a particular description of a certain theme, but, you know, I believe that there may be a certain central theme playing out that there may be more discussion as we get closer to hashing out what exactly the House and Senate budgets will look like as we get to cross over.

[00:50:16] Thank you, Mr. Freeman. Thank you, Mr. Vice Chair Turner. Thank you, Madam Chair. First, a clarification. The JLARC study in December 9th and 24 specifically said we recommend that the legislature pass an ordinance allowing Dominion to delay delivery of power.

[00:50:40] And the implication clearly in the statement in JLARC was it's not legal in a regulated monopoly state, but they're doing it now of necessity. So there may be a case now to say, well, it's de facto approved because they've been doing it, and that's what JLARC said.

[00:50:57] You ought to pass an ordinance to legitimize it, and it sounds to me like Senator Perry's bill was trying to do exactly that, is to legitimize what's actually going on. But right now, the JLARC study is very specific in saying they do not have the authority to delay the application of power. But right now, they simply don't have any choice.

[00:51:14] My larger question is, is the overarching theme here, and this has a personal tone to it. I don't know how else to say it other than this way. Is the overarching theme here on data centers and on houses, we have a data center exponential growth, which is really putting a demand on our grid, and the local counties don't know how to deal with it, so we're going to deal with it. And we have a housing crisis, and local counties don't know how to deal with it, so we're going to deal with it. Is that what this is, just an overarching attempt to wrest authority out of the local governments because they view a crisis, and the

[00:51:51] crisis is not being ameliorated at the local level? Go ahead and answer freely. So I think as it pertains to power it's a very difficult discussion because as it pertains to energy that's you know we're talking about demand that is a state regulated utility so putting that aside to one end that is that may be something that you know as we talk about the consideration of power for

[00:52:24] local governments. That may be something that takes a few years to convince legislators into doing in the code because, again, power is currently a state-regulated utility and is handled through the SEC. As we talk about housing, there are a lot of housing bills that are taking away local government and authority I believe that there's a school of thought down in the general assembly that there are some localities that just haven't been good actors okay and have

[00:53:03] maybe slowed up slowed up the housing supply let me let me jump in and ask let me jump and ask question on the faith and housing will this bill permit a church to buy property specifically and make a church property and specifically then allow housing developments whereby the church can make a profit by buying property and selling housing to developers with no capital infrastructure, I might add. Meaning if the structure did not currently exist at the time the law was passed.

[00:53:35] That's right. I believe that the law is tied to the land and then the stipulations on what that housing could look like on the land is what the bill is essentially trying to do. But I will I'll consult staff to ensure that that is correct.

[00:53:56] But I believe that what essentially the bill is trying to do is put into law a religious organization having a property and being able to build within the standards outlined within the bill instead of the

standards outlined within a local government's planning and zoning.

[00:54:15] Okay, thank you. Yeah, I'm so, I don't know, I don't, I'm so upset about these bills that are taking away local control as if, yeah, okay. So I think that if I'm trying to be solution focused, what we might, and Jonathan, I don't like your opinion on this now or later, what we might want to focus on is also having a reactment clause in the Senate bill like the one in the House bill.

[00:54:45] At least that would give us a year to have these discussions, either us or BACO or somebody, with senators and delegate members to, one, discuss how much we're already doing, and, two, why we actually have the zoning and regulations in place that we have.

[00:55:04] Even if we said what Ms. Bricksman said, and it was based on density, there are some parts of Western Loudoun County where even the density is there right now. we could not welcome more homes. There's not enough water, for God's sake. I mean, like literally, think about how crowded Route 15 is already. Think about the school system, the schools out there that are pretty, so this is literally taken away, I mean, 70% of what we do is land use and zoning. This literally takes away our land use and zoning capabilities, and I always say that

[00:55:37] When we say yes to a new housing development, be it for rental or for purchase, we have to make sure that we have put in the infrastructure either before or right along with the approval of the housing.

[00:55:54] Right now, that goes by the wayside. There will be none of that now. And the obvious question is, as they're doing this, are they giving us any money for the capital needs? Are they giving us any money for water or for road improvements or for schools or for more fire and rescue or for more deputies or for more open space or for more parks or for more trails?

[00:56:16] All these things are things we take into consideration before we say yes to a new housing structure. So, you know, I know it's Senator Carol Poirier's bill, who I think is a fantastic human being.

[00:56:32] Maybe we can have a discussion with her about the enactment clause, and that at least will buy us some time. I will say one of our delegates voted for this bill in subcommittee that I was, of all the people, I was sure he wouldn't because he'd been a local elected official before.

[00:56:48] So I'm not quite sure what's going on down there, but the losing local control of land use is shocking and disappointing. and it will not help the citizens of Loudoun who are here or who are coming.

[00:57:07] My last question is to you, Mr. Rogers, and you may or may not know this. Since they killed the bill that will allow us to have any say over data center noise, is there anything legally we can do to try to convince, control, whatever, to a data center to not have the tonal noise or the low humming noise that we hear from our residents right now?

[00:57:32] Do we have any legal recourse? You just said things like work with, cajole. Absolutely, we could do that. We could not put a law in place in order to do it. We could not require it. Okay, okay, all right.

[00:57:51] Ooh, baby. Okay, we have two motions on the dais. Ms. Bricksman, let's go to your motion first. Yes. Thank you, Madam Chair. I move that the Loudoun County Board of Supervisors support House Bill 395, electric utilities, small portable solar generation devices, local regulation, patroned by Delegate Paul Kriesick in the 2025 legislative session.

[00:58:22] I will second it for the purpose of the discussion because I'm not sure, so I'll second it. Thank you. So, this bill basically would allow a homeowner to do balcony solar, and I was going to make this motion at our last meeting, but I realized there were so many bills that they would probably get combined, and they have gotten combined.

[00:58:44] It permits any electric utility customer to own and operate a small portable solar generation device with a maximum power output of 1,200 watts. This includes balcony solar. It's not interconnected with the grid, plugs into an outlet.

[00:59:00] It's intended to offset part of a home's electricity use. The bill prohibits utilities from requiring interconnection, charging a fee for a consumer to use the device, or requiring a consumer to obtain the utility's approval. Balcony solar is a simple at-home solar setup that does not involve interconnection with the grid, but rather plugs into a standard outlet and can reduce how much power a home poles down off the grid, leading to lower electricity bills. Currently, having such a device without interconnection is not allowed by law. HB 395 would allow the devices to have power

[00:59:38] out, as I said, power output up to 1,200 watts, and balcony solar can be a great option for homes with balconies or roofs to be able to lower their electricity bills. So I would appreciate my colleagues' support of this bill. Thank you. Further discussion on that motion? My question would be, I don't know, and I'm not saying yes, I just literally don't know. I don't know how heavy a solar device is, if it's going to be in the balcony. If I'm living below that balcony, is that device that's on the balcony now a very heavy device? Am

[01:00:15] I looking at it crashing down on me during my cookout? I have done a little bit of research into it and um they don't appear to be so heavy that they would do a lot of damage if they were to not be installed correctly that's a little that that's my only that's my only concern well let me ask if i might uh madam chair ask in your time the county attorney a question no you may not okay because well i thought it might help oh i mean is it gonna if it's not unless it's gonna answer that question i think it might answer okay mr okay would we be able to as a jurisdiction if

[01:00:53] this bill passes would we be able to um put uh weight limits or permitting or some way control the use of these devices i'm not sure i think we have to ask the general assembly that since we're taking all of our power and i'm just kidding i'm not sure i'd have to take a look at the bill Okay.

[01:01:13] Okay. So in my time, so Ms. Brixman, what I'm going to do on this motion is abstain until I just get more answers. It's not a no, but I do think that I don't know how heavy these devices are, and I don't know what a balcony can't hold or can't hold or that type of thing.

[01:01:29] Okay. And I don't know what a balcony plus three people on the balcony can hold or can't hold. I'll send you some information. And so, yeah, so I'm not, and I'm happy to come back and add my name later when I get more than information but but the building regulations around that would be some a reason that i would i'm gonna i'm gonna pause and just abstain on that right now thank you okay would you like to close uh thank you madam chair um yes i i do agree that some some questions would need to be answered um but i think this is a great option for our residents who are interested

[01:02:02] in solar um i'll just say from personal experience i put my address in the solarize virginia portal and i was told i have too much shade i can't put solar on my roof and so this would be helpful for example for someone in my situation who really would love to lower my electricity bills take advantage of

clean energy but i can't put solar on my roof and i you know i did a little bit of research and looked at what they look like they don't look that heavy but i've never lifted one so i'm happy to to share some more research, and I'm sure Delegate Krizig also has some research that he'd be willing to share. Thank you, Madam Chair.

[01:02:41] Yeah, I would love that. Okay. Mr. Fixman made the motion. I second it for purposes of discussion, and I will come back and change my abstain into a yay once I get some of those answers. But in the meantime, I want people to say aye. Aye. Opposed? No.

[01:02:58] And I will abstain. So that motion will pass 6-1-1-1 with one person being absent, person voting no, one person abstaining. So I have a motion. I move the Black Point Board of Supervisors support House Bill 1021 regarding affordable rent units and proposed assistant living facilities patron by Loudon Delegate Atusa Rieser in the 2026 legislative session.

[01:03:25] Second. All right. Thank you. Thank you very much. So this is pretty self-explanatory. We've done some research. There's a difference between an age-in-place community or a senior living community or an assistant living community.

[01:03:41] Those three things are all different. Most assistant living communities are rentals. Most, if not all, age-in-place communities are a purchase, and most senior living are a purchase. And so this is just talking about if you are an assistant living facility that you're renting, that we can have some, excuse me, working with the developer, have some rental units, have some units that we set aside to be attainable rental units.

[01:04:11] And so if you are on a fixed income, you just don't have the means that some of those units, not all of them, and it would be worked through with the developer, some of those units can be for rent. So that's all this is doing, and it is because, especially because it's one of our delegates, and we want to support her.

[01:04:31] So that's it. Anybody have anything else on that? Ms. Brooksmen? Thank you, Madam Chair. I've had several discussions with Delegate Reeser on this bill. This bill passed the last two sessions and was vetoed by the governor, so she's really hopeful that it can pass and get signed this year.

[01:04:49] I also spoke with some of our land use developers and builders in the county, and they are fairly positive on it. Although NVBIA said that they wouldn't support nor oppose this bill.

[01:05:06] They just aren't tracking it and don't have an opinion on it. But otherwise, sort of my little survey of our partners in Loudoun County seemed to be in favor of it. Thank you, Madam Chair. Thank you. Mr. Letourneau? Yeah, I have a few concerns with it, so I'm not going to support it, at least to add to the legislative session.

[01:05:24] I think it would be very complicated on RM because the permitted zoning districts for assisted living do not necessarily align with housing. So we'd be talking about then significant comp plan issues with housing being required in certain places that we would have assisted living.

[01:05:43] I also think that as a local body, if we wish to see market rate units or affordable units with assisted living facility, we have the ability to request that and consider that in our own land use process. And so I don't envision a scenario where I would want to see this as a requirement that would sort of apply across the board.

[01:06:08] So I'm not ready to jump in on it at this point. Sure. Anybody else? Mr. Kirshner. Yeah, just a follow-up. So I heard Mr. Letourneau say as a requirement, again, this is the first time I've seen it when I sat down here. I sent it to you guys today.

[01:06:23] I understand. I didn't get it, obviously. I apologize. The agenda was fairly light, and I obviously didn't see this. So I may just abstain, but it sounds to me, the way I'm reading this, and I can ask the chair or anybody else who wants to weigh in on it, it gives us the option to work with them and with the builder on a special permit exception that is correct so it's not a necessary requirement right it's not it is an option it is correct it would be voluntary it would have been okay yep you are correct all right miss i think i'm okay with that

[01:06:57] that is the case okay yeah okay miss umstead uh thank you madam chair does either the chair or mr freeman know the financial structure that assisted living facilities are guided by do they rent out individual rooms or do you pay a fee and are assigned one room and moved possibly to another

[01:07:32] does the current structure under which the assisted living facilities operate does it lend itself to being regulated in this way so i could so and that's a great question and something that mr mr uh delegate research i talked about and that's some of the research that i've done most assisted living facilities i of course i would never say 100 but most of them you pay a it's it's a rental it's a rental room or rent a small rental apartment it is not a age in place

[01:08:05] community where you pay almost a mortgage, but your mortgage stays the same no matter what your life circumstances become. And so you move in, you're 55 years old, you're healthy, you're walking around all these things. You know, many, many years later when you're 90, you may need some assistance and you move into a different room. That's an age in place community. And then there is just senior living and all senior living is it's they are also mortgages and you have to be a

[01:08:38] certain age just to live there so assistant living is much more a rental situation does that answer your question yes ma'am okay thank you all right um all right so mr turner thank you madam chair so i want to be clear because we were talking about this is optional the way i'm reading this if we pass an ordinance it's a requirement we can pass an ordinance that says in loudon county if you're going to build an assisted living facility and you come to us for a special exception or special use permit then we can require you to provide affordable rental units in that application

[01:09:14] am i misreading that you well i've talked to miss miss reaser and she said that it it would still be an option that that is what that is what the the patron has said now if she's wrong i'll come back to you all. Just to be clear here, the option would be in whether or not the board decides it wants to pass an ordinance, but the language here says that we have the option to pass an ordinance that would require the affordable units in assisted living facilities. So what are you asking me?

[01:09:44] Are you asking me whether the option is to pass in the ordinance? Yeah, that's the only optional part of this whole thing is if it's up to the board whether it wants to pass that ordinance or not but this empowers our board to say in loudon county you are if you're going to build an assisted living facility and you come to us for a special use permit or special exception we are going to require that you include affordable rental units in your assisted living facility i'm not sure i disagree with that i just want to make sure i understand that's the language and how many in and and and to what ami would be something that we worked out okay i'm going to support it only because i think a lot of good minds have done a lot of homework on this and i trust their judgment

[01:10:21] on this, but I'm just a little confused as to exactly where the option is here. So I would say this in the closing. I would say, and Mr. LeTerno said this would be hard, and I would say that somebody once said it loud and we do hard things. And we just had a conversation about losing land use control because we're not putting enough, in General Assembly's mind, not putting enough attainable housing on the ground.

[01:10:46] So now we have a discussion about not just attainable housing, but attainable rentals, and not just attainable rentals, but attainable rentals for senior populations. So whether or not this ordinance says you have to do two at 30% AMI or five at whatever, we're talking about attainable homes for seniors. We're talking about attainable rentals for seniors. And we have figured out much tougher stuff than this before. And it just seems to me or whenever we start talking about, you know, things for people who might not be able to afford it, it becomes, well, how do we figure that out? Well, how do we figure out everything in Loudoun

[01:11:26] County? We have a really, really leaned in board, really great staff. We, we, we figure these things out. And, and I cannot even imagine not being able to support a senior who wants to have an apartment and we don't try to figure out how to help them get one at a lower AMI. And at the same time we're telling the general assembly yes we want we're doing great things for attainable housing please don't take our land use control you better choose people we better do this stuff we're going to lose all our control i made the motion second by supervisor bricks but on paper

[01:12:06] say aye oppose um and that would be one abs abs abstaining so that would be i think that's still six one one one with one opposing one abstaining and one being personal today is mr sayings he will be here soon. Thank you very much. I think, Mr. Freeman, do you have anything else for us for this very, very, very sad, sad update that you just gave us? It's not all doom and gloom. It pretty much is. It really is. It's pretty doomed and gloomed. And I look forward to fighting alongside you all

[01:12:46] on Thursday for Local Government Day. Okay. Okay. One more time. Okay. Thank you, Mr. Freeman. I think we're good. Thank you very much. Thank you, Renee. Appreciate you all. All right. We do have, in a little while, we have a resolution, but we are not quite to 530 yet for the resolution, and so we're going to go on to the second information item, which is the significant incident report by our fire and rescue. Chief Travis Pro, come on

[01:13:18] down. Hello, Chief Pro. How are you, sir? I am well. You bought the A-team with you today. You did. How y'all doing? Good evening. You guys have been just a little busy since we were here last time, haven't we? Yes, ma'am. We have. Okay, we're ready when you are. All right. Good evening, Chair Randall, members of the board. Today, I will provide a brief overview of Loudoun

[01:13:58] County's combined fire rescue system performance and key activities during the second quarter of fiscal year. Just bring your microphone just a little closer. There you go. And I have with me to my left, Acting Assistant Chief, Chief Lofton, and to my right, Acting Assistant Chief, Nally.

[01:14:16] Today will be my last presentation because, because, good news, good news. So we will have the fire chief back on Monday. So if you told me that I could bring that to you, let me take you off the ledge. - Exactly, thank you, that's wonderful.

[01:14:33] - So Chief Williams will be back with us on Monday the 9th. - Wonderful. - So we look forward to that. - We do. - So during the second quarter of fiscal year 26, members of the Combined Fire and

Rescue System responded to a total of 10,358 incidents, including 7,500 emergency medical calls and 2,800 fire-related calls.

[01:14:55] Our most frequent EMS dispatch reasons were sick person, fall injuries, and motor vehicle accidents. Our three top fire-related incidents are fire alarms, gas leaks and structure fires this level of activity continues to reflect the steady demand on our combined system of career and volunteer responders with this operational context in mind let's move to significant emergency incidents that shaped this quarter we experienced several significant incidents this quarter most of which were residential on October 3rd an extension cord

[01:15:31] serving a space heater overheated causing a fire on the first floor of a three-story duplex on Mayfair Drive in Northeast Leesburg. Damages were estimated at approximately \$65,000 with an additional \$15,000 in smoke damage to the adjoining unit.

[01:15:47] On October the 20th, an unattended candle led to an estimated \$450,000 in damage after a house fire was reported on Yellow Poplar Drive in Aldi. Firefighters arrived and found, firefighters arrived on scene and quickly located and extinguished a fire.

[01:16:04] Fortunately, no occupants were home the time of the incident and no civilian or firefighter injuries were reported. On November 15th a lithium-ion battery failure resulted in an estimated 1.25 million dollars in damage after a house fire was reported on Kiphart Drive in Leesburg. Firefighters arrived on scene and reported heavy smoke and fire visible from the first floor of the two-story home and began the defensive operation. One civilian was evaluated on scene for a minor injury and one firefighter was transported to an area hospital for a minor injury. And lastly, on December 6, electrical

[01:16:42] panel failure caused approximately \$2.7 million in damages after a structure fire was reported along Loyalty Road in Leesburg. New occupants were displaced as the metal structure was not used for housing and there were no reported civilian or firefighter injuries. Tragically, we also responded to and investigated a three-alarm residential fire in Sterling on October 24th that ultimately resulted in one fatality and one subject arrested.

[01:17:11] The victim was identified as Madeline Samantha Akers, 36, a resident of one of the townhomes and the only person who was unaccounted for after the fire. Further investigation by the Loudoun County Fire Marshal's Office and the Loudoun County Sheriff's Office led to the arrest of 78-year-old Jacob Bogutin of Sterling on one count of felony murder and one count of burning or destroying an occupied dwelling.

[01:17:33] He was taken into custody on October 28th. Other incidents this quarter include vehicle accidents in the buildings, confined space rescues, reported explosion in Ashburn that remains under investigation by the fire marshal's office. Beyond emergency responses, our combined fire rescue system advanced several system-wide initiatives to strengthen our community relationships and interagency collaborations.

[01:17:57] We launched our first annual Heroes for the Holidays toy drive, collecting over 4,400 toys to benefit children in need right here in Loudoun County. How many is that, Travis? How many? 4,400 toys collected in our first ever Heroes for the Holidays toy drive.

[01:18:22] Also, additionally, the Loudoun County, the Loudoun Career Firefighter Foundation, the charitable 501c3 nonprofit for Loudoun Career Firefighters Association, collected over \$3,700 in donations to assist each of the four nonprofit organizations that we supported.

[01:18:39] We also hosted our annual coat drive, collecting 1,361 coats and 300 winter items. So overall, another very successful year, and we express our thanks to the community for their continued support on these initiatives.

[01:18:58] The Loudoun County High Threat Team trained 14 law enforcement officers from across the region in joint response tactics as part of their second Responding to Fire as a Weapon Incidence Training course. Seven fire and rescue personnel graduated from the Northern Virginia Fire Rescue Leadership Development Institute company officer program, which addressed leadership concepts crucial for clear communication, building relationships, and developing trust for prospective and recently promoted new frontline supervisors.

[01:19:29] Now we'll take a look at our EMS and health initiatives. In late August, quick bystander CPR and LCFR intervention during a cardiac arrest incident led to the full recovery of a patient, highlighting the importance of bystander CPR.

[01:19:47] According to the American Heart Association, only half of Americans would perform life-saving CPR, with the other half either not knowing what to do, fearing legal ramifications or hurting the victim or thinking someone else is going to step in. Virginia's Good Samaritan law protects you if you stop to help someone experiencing a medical emergency. The benefits far outweigh the risk and it's important for everyone to learn and feel comfortable performing CPR. We celebrated National Pharmacy Week during the second quarter of fiscal year 26, highlighting the incredible work of our pharmacy team that was established in February of last year.

[01:20:26] This dedicated group, comprised of a pharmacist, two pharmacy technicians, and administrative assistant, plays a vital role in supporting our system's operational readiness and clinical excellence, overseeing medication management and compliance across several designated locations, ensuring all controlled substances and documentation meet strict DEA and the Virginia Board of Pharmacy regulatory standards.

[01:20:50] During the month of October, our system members wore breast cancer awareness t-shirts, spreading awareness about cancer, discussing the impact of early detection and prevention, and supporting the individuals and families who have been affected by this disease. Firefighters, EMS personnel, and other first responders encounter toxic chemicals and carcinogens on nearly every call.

[01:21:12] These exposures place them at much higher risk for developing cancer. The health and wellness of our system members is a top priority for our organization, and our Office of Health, Safety, and Wellness offers extensive awareness and prevention reference materials, including guidance on screenings, risk factors, and health practices.

[01:21:30] By staying informed, taking proactive steps, and making health a priority, we can help ensure that our work can protect us every day. Finally, our community engagement. Each year, we recognize October's Fire Prevention Month, teaming up with the National Fire Protection Association to spread awareness about fire prevention and life safety topics.

[01:21:51] This year's theme was charge into fire safety, lithium-ion batteries in your home. Many of our volunteer fire and rescue companies hosted open houses and community outreach events sharing critical fire prevention information. In October, fire and rescue crews conducted one of the two larger smoke alarm canvases that take place each year during the smoke alarm program.

[01:22:13] This program is conducted annually from April to October. However, community members can visit our website and request a free smoke alarm assessment at any time. We learned during the second quarter of FY26 that the Loudoun County Emergency Communication Center has achieved the internationally recognized triple ACE accredited Center of Excellence designation through the International Association of Urgency Dispatch, placing it among only 29 centers worldwide.

[01:22:43] The accreditation process is an intensive evidence-based evaluation of an agency's performance, quality assurance, and adherence to internationally recognized protocols. The ECC will receive its official recognition at the IAED Navigator Conference in April of this year.

[01:22:59] In summary, quarter two of FY26 demonstrated the Loudoun County Combined Fire Rescue System's commitment to operational excellence, community safety, and interagency collaboration. From responding to over 10,000 incidents to advancing training and outreach, our system members continue to strengthen Loudoun County's emergency preparedness and resilience.

[01:23:18] At this time, I'll be happy to answer any questions that you all may have. Well, thank you, Chief Pro. Before I go to questions, let me say that we do look forward to our friend Chief Williams coming back, and we're thrilled about that. But you have been phenomenal. You stepped in, and you've been doing this for a little bit longer than we anticipated.

[01:23:39] You've just done such a great job, and again, you all have been so responsive, and we appreciate you very much. Now, my real question is, does this mean Chief Nally gets to go back to my station, the Lansdowne station, where I kind of miss seeing him there? Does he get to go back? No?

[01:23:55] . All right. . Madam Chair, and thank you, Chief Pro, and especially thank you for all of your hard work on the Riptide Square incident.

[01:24:14] We are working to figure out how to get that cleaned up now that the investigations are over, but it's tied up, as you can imagine, in a bunch of different situations. I'll take this time, this moment, to say that I am disappointed that the Sheriff's Department is no longer submitting a significant incident report to us.

[01:24:34] Since the sheriff launched an online dashboard, I guess he has decided that he will no longer be coming in front of the board for a significant incident report. I did a little comparison between the dashboard and the significant incident report as to the differences.

[01:24:51] The number one difference is that we can no longer ask questions about certain things going on in the community. Also, the dashboard leaves out a narrative about more significant investigations. It leaves out the data on firearms stolen from vehicles, which has doubled since 2019, and it took me about a year to get them to put that in the significant incident report.

[01:25:13] It does not have information on overdoses and opioid-related incidences. The dashboard does not have information on ADC programming. It does not have information on awards and promotions and other recognitions. And probably most concerning is it does not have information on traffic stop data that indicates the demographics of those who are stopped in traffic and those who are searched when they are stopped in traffic. And this data is a little bit old, but in the first quarter of 2025, the data indicated that the Hispanic and Latino population is now seven times more likely

[01:25:50] to be searched when stopped by LCSO. For context, in the first quarter of 2024, Hispanic and Latinos were less than twice as likely to be stopped and searched by LCSO compared to their non-people of color counterparts in the county.

[01:26:08] And additionally, traffic stop data from the first quarter of 2025, oh, I already said that, they are getting stopped more than seven times more. Additionally, the Loudoun County Sheriff's Office increased by over 65% the number of traffic stops in that first quarter of March from 4,290 January to March 2024 to 7,088 stops from January to March in 2025.

[01:26:37] This means a 30% increase in the beginning of 2025. And like I said, that data is not on the dashboards. We don't have comparisons for other times for the rest of 2025, but that's what we had as of October of last year.

[01:26:52] So I really would like to see that data shared on the dashboard if the sheriff won't be coming in front of the board. Thank you, Madam Chair. Ms. Umstead. Thank you, Madam Chair. Thank you for your presentation. And we're going to miss you.

[01:27:12] We'll miss you coming and giving this report. Very good. On the challenges that lithium ion batteries and charging packs generate, I just looked up your report on the county website, and I think it was very thorough.

[01:27:41] So this wasn't like an e-bike being charged. This was a battery pack being charged, which I guess would have been used for an appliance. This is for Kiphart and Leesburg?

[01:28:00] This is the \$1 million fire. Kiphart Drive, yes, Ms. Linsdale. Yeah, that was a charging battery pack that was on a table in a living room. So I don't know what it might have been charging, but it was a battery pack, not an e-bike, scooter, anything like that.

[01:28:19] - And in the past, when we've asked for the best advice on what to do with these things, we've gotten the advice that it's always a mistake to charge these things inside the residence, inside the garage, but people aren't gonna recharge their packs outside.

[01:28:43] So I thought your advice on the county website was very good, As in, don't leave that unattended. You've got to hang around. And unfortunately, sometimes they can take hours to charge.

[01:29:00] So a lot of folks aren't going to do that. For someone who is not going to stand there and look at it for the hours it takes to recharge, do you have any best advice on where to charge it?

[01:29:18] Should it be in a metal sink? Should it be on a stone counter? Is there any good advice that we can give to residents if we know they're not going to charge it outside?

[01:29:38] So this October, the charge up for fire safety, there was a lot of information that we published, so I don't want to contradict any of it, but it is still available on the LCFR website. So that's still there. Some of the basic tenets are, first, to charge it on a non-combustible surface.

[01:29:56] Don't charge things on your bed. Don't charge things next to other things that can catch fire. So I guess putting it on, you know, a counter, putting it on something that will not catch fire is the first option. Second, always make sure you buy devices that, you know, Chief Johns would always say, you know, don't buy your lithium-ion stuff from, you know, a convenience store, right?

[01:30:16] So make sure you buy a credible, reputable product, because that means there's some reliability. Don't leave things charged in for weeks and months on end. Charge it, unplug it, put it away. That increases your safety factor. So those are some of the basic ones, but we have lots of information available on our website.

[01:30:35] Okay. Thank you very much. Ms. Glass, you turned yourself off. I did. Thank you, Chair Randall, and thank you, Chief Pro. Thank you for the update. So lately, we have had very cold temperatures outside in the single digits, and I was looking on social media, and I saw, I don't know if there were middle school or high school students that were walking on ice.

[01:31:12] I couldn't tell. It was a pond, lake, whatever it was. First of all, what is the temperature that people could safely walk on a pond, and should they? Maybe that's the first question. Should they walk on ice, on an ice river, ice pond stream? I'm going to let Chief Daly answer that, But I've only known of one person to safely walk on water.

[01:31:47] That's fair. Good evening. That's a great question. I'll answer the most, what is the temperature that's safe? There isn't one. It's about knowing your environment and those types of things.

[01:32:05] There's so many things that can change in those dynamic environments of, you know, the waters. There's ponds and there's rivers. they will freeze up at different temperatures based off running water and those types of things. So we would never want to communicate any type of temperature or duration because that's also a period with it, you know, of that case.

[01:32:24] We've run, just of note, we've run 11. Just in this meeting there was another ice rescue call as we were sitting there. And most of all of these ice rescue calls are good intent calls, which is a good thing. There was only one where the person was out of the water after the ice broke and did receive medical care.

[01:32:43] The rest of them mostly were good intent. There was no injuries or anything along those lines. But it shows that the community is concerned about it because they're calling 911. So I think your question is very valid. So from fire and rescue, there's no temperature. Stay off the ice is the message we want the community to receive.

[01:32:59] Thank you. Absolutely. Mr. Vice Chair Turner. Thank you, Madam Chair. So this job has been an eye-opener for me in terms of fire safety and fire incidents. I'm astounded, and I'm saying this for the public and watching this, I am astounded at the number of fire incidents we have in any given month.

[01:33:22] And there are obvious things that we all know not to do that are done. I saw one the other day of a candle that was left unattended. We get a lot of those. The lithium battery thing, I have gotten into the habit of exactly that. I will not charge anything if I'm not in the house.

[01:33:43] And all of my charging stuff sits on a fireproof surface of some kind. There's just a lot of things that have to do with fire safety that we just listen to our firefighters. They're telling us exactly what to do and don't have it in the back of your mind.

[01:34:00] Oh, that's never going to happen to me. I'm trusting when you sit here on this seat and you see how often it happens in Loudoun County, it is very disturbing. My question is, I've got to get a fire extinguisher from my condo. What kind of fire extinguisher is most effective against lithium fires?

[01:34:20] There isn't. This is not a great answer. Let me frame that in a good context. So the way the lithium ion batteries fail and the way that the kind of thermal runaway happens, this is not the normal watch a candle burn and grow.

[01:34:42] These are like explosive events. And the heat that they put off are tremendous. The direction that we would normally teach you if you had a fire in your house, those rules kind of go out the door when it relates to a lithium-ion battery because they are very fast, they're very hot, and there's almost a concussion with them.

[01:35:04] So what I'll tell you is an ABC extinguisher covers the gamut, the ABC material. So an ABC, you know, 5 or 10 pound under your counter is the absolute best one, covers you know the widest gamut what i'm not going to tell you to do is try to do our job right so you and all your duckies get to the exit get outside call 9-1-1 we will come help solve your problem don't be the hero leave that to someone else that's going to be my recommendation i'm sort of extreme in this category i will admit to everybody i live on the sixth floor of my condo

[01:35:39] building don't and i bought i bought a 60 foot collapsible ladder and a bag to put maggie in and I am prepared to put that ladder out my six-floor window with Maggie on my back and climb down to safety because I'm on the sixth floor.

[01:35:56] And from what I understand, we don't have ladder trucks that go higher than three floors. And we had an incident on the fifth floor in my building and it was go up the stairs and come down the stairs. So I take this stuff pretty seriously thanks to you guys. So thank you.

[01:36:11] And I am just the opposite. If something happens, I am running away and leaving everyone to fend for themselves. Everybody for yourself, God for us all, let's go. That's pretty much where I live. First of all, you know, Ms. Umpstead's question was a really valid question because, you know, when I think of lithium battery, I think of something that charges a, you know, a scooter or a bike or something.

[01:36:36] I don't really think of this, right, as lithium battery. And Mr. Turner just said, we all know better, we all know better. I will tell you, I have left my phone charged on a charge on my bed before. two days ago so i will tell you that's happened and so it never really when you think of lithium battery it sounds like a big a big but this but you don't think of your cell phone you really don't so this is one more time and one more um reminder i must i'm concerned obviously from you know from from losing uh firefighter brown gas leaks seem to still be a huge issue in loudon

[01:37:13] county what is going on what should people be doing something different is there preventative measures we should be going about so we're not seeing. I mean, we lost a firefighter to a gas leak. What should we be doing differently in the county? Because the gas leak numbers are pretty high. We anticipated this answer. And the first thing, and Natalie will give you a more comprehensive answer. So the number is a number, but I want people, if they smell gas, to call 911. And if that brings the numbers up, it brings the numbers up. So make sure. We don't have a problem with

[01:37:49] people reporting. So if you think you smell gas, call the people. We have lots of equipment to help identify that. But we anticipated this, so we did a little research for today because it was pretty high number. It was pretty high number. Thank you. So to this point, the mercaptain, the agent that they put in with gas so that we smell it is very strong, right? And it's intended to be very strong. You're not smelling the gas. You're smelling an additive in there.

[01:38:15] So that's what's cluing the folks in that there's gas in and around. It's an oily-based substance, and so sometimes there's a little residue if there's too much of it, so they smell. What we like to see is folks calling 911. A lot of gas leaks that we go on are good intent, right?

[01:38:32] They could just be human error if somebody left the stove on too long or those types of things. Now, there's a whole litany of things of why we have some gas leaks. And when we do find something, like it was in the Broadlands area that we had some defective kitchen equipment that was delivered and placed into homes.

[01:38:50] And the fire marshal's office, once we responded several times, we figured it out. And we took care of all of that kitchen equipment that was in all of those homes and worked with the developer in the fire marshal's office. So when we see something like that, that we know that that is a true problem and that's going to continue to, without human intervention, going to continue to have problems, we address that very quickly.

[01:39:09] You know, we will continue to have lots of gas leaks just because of the smell of our captain. We want folks to call 911. I know it's out of town. What I will say to that piece of it is we had more during the snow event because of the freezing diaphragms and those types of things in the meters and in the blocked vents as well.

[01:39:30] And we sent out lots of information on that for folks to try to make sure they mitigated those hazards. Gotcha. Wow. Well, thank you. Thank all of you. And Chief Pro again, thanks for all that you've done.

[01:39:40] for us. All right, that's it. Thank you very much. Okay, we're going to go on and do the Black History Month celebration. Before we start the Black History Month celebration, I do want to say this. The ladies of Sigma Gamma Rho have chartered their chapter in Loudoun County. Sigma Gamma Rho is one of the Divine Nine. The Divine Nine are the nine fraternities or sororities that are the vast majority of the population and those other members are African-American. I say that I am a

[01:40:17] member of Delta Sigma Theta One of the divine nines, which is why I have my jacket on today. I say that because a lot of people have no idea what is different between African-American fraternities and sororities, the nine, and others. And it is the reason I always make sure I talk about the D9 is because at this point, all nine are public service sororities. All nine are looking to do just good in the county. There's only nine of us. And we are, once you pledge or join,

[01:40:57] you are that for life. You don't leave one and join another. It doesn't work like that. It is a very serious, maybe I shouldn't say serious for obvious reasons. It's a very serious commitment to be a D9 member and it is a lifelong service commitment. And so I think sometimes people might go, oh, it's just a fraternity, it's just a sorority. But the D9 is very different.

[01:41:23] And so with Sigma Gamma Rho charting in our county, we now have eight of the D9 in our county. So I wanted to say that before we started the resolution. So with everyone who is here for the African-American History Resolution, please come down. I also want to say Mr. Saines is running late, so he can't be here with us today. Ms. Glass, will you join me down

[01:41:47] front? I'm going to have you guys talk a little bit about yourselves after I read the resolution.

[01:42:57] I do want to say that standing to my left is Michelle Thomas, who is the president of the NAACP Loudoun branch. The NAACP is the keeper of the record for the Black History Resolution, and so they have been with me every year, every year I've written it, and the NAACP has received it.

[01:43:17] And so they have all the past resolutions. And so thank you, Michelle. I know you had actually planned to be someplace else, and you're here just to pick up this resolution. That is a big deal, so thank you so much. So we're going to read it, and then we're going to have everyone say a few words, okay?

[01:43:35] Mr. Sains, Ms. Glass, Supervisor Sains, Supervisor Glass, thank you very much for joining me in the resolution every year. I appreciate you. Proclamation for Black History Month. Whereas, through the collaborative efforts of the Friends of the Thomas Balch Library Black History Committee, Public Historian Donna Bohannon, Professor of Integrative Studies and History at George Mason University, Dr. Wendy Manuel Scott and student researchers Shamika Kirby and Annabelle Spencer, the legacy of the Willard community, a formerly thriving black village displaced

[01:44:13] by the construction of Washington Dallas Airport has been preserved and shared through the project Spatializing Black Stories, a publicly accessible digital archives that ensures the stories of Willards and other black communities remain visible for future generations.

[01:44:31] And whereas the Zizi Sigma alumni chapter of Sigma Gamma Rho Sorority Incorporated, I got you, chartered the Loudoun County chapter on October 4th, 2025, making them the eighth member of the illustrious Divine Nine to establish a chapter in Loudoun County.

[01:44:51] Established on November 12th, 2022, in Indianapolis, Indiana, Sigma Gamma Rho's commitment to service is well expressed in their slogan, greater service, greater progress. And whereas Gerald Charles Corey, also known as Jay Jones, was elected on November 4th, 2025 as the first African-American to be elected attorney general in the Commonwealth of Virginia, Attorney General Jones' parents were both stalwarts of the civil rights movement in Virginia and judges in the Commonwealth of Virginia.

[01:45:27] In fact, his mother sworn for him in. And whereas Loudoun County began pre-production of a documentary that will tell the incredible story of how, in the late 1930s, Loudoun's African-American community raised money and purchased land to build their own high school because Loudoun's segregated public school systems would not allow all students to matriculate to high school.

[01:45:54] The story of Douglas High School, named for abolitionist Frederick Douglas, will be documented by film makers, Ditch Life, who were interviewing former students who attended Douglas from 1941 to 1968 and also interviewing other community members.

[01:46:13] Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim February 2026 as Black History Month in Loudoun County and encourages all citizens to appreciate the contributions African-Americans have made through the history of our county towards making Loudoun an exceptional place to live, work, learn, and raise a family.

[01:46:42] Chief Propp, will you come stand up here with us, please? Okay, so first of all, thank you all for being here. It is wonderful to have you all. I'm going to go to Ms. Bohannon, you first, because you're the first person listed in the proclamation, and I want you to talk about the project, what it was, why you did it. I know Mr. Sains had a huge part of that discussion, and anything you'd like to tell us, and to introduce your students as well.

[01:47:10] Thank you so much. I'm Donna Bohannon, chair of the Black History Committee, Friends of the Thomas Bulch Library. And I first want to thank you on behalf of the Black History Committee, Thomas Bulch Library, Supervisor Sings.

[01:47:30] Thank you so much for helping us in telling the Willard story on a public level. The project was something that was part of our mission to preserve and share the stories of African-Americans in Loudoun County, but we couldn't have done it without a partnership with George Mason University, Center for Mason Legacies, and the students.

[01:47:58] And I think that I would like to pass the mic to Dr. Wendy Manuel Scott to tell us more about it. thank you thanks everyone for the invitation Center for Mason Legacies at George Mason University is focused on telling the stories that have not been told before telling the stories that have been silenced and erased and we were able to do that work because of incredible students two of which are here and I will let them share a bit about their incredible archival research and the beautiful and powerful accessible website that everyone should

[01:48:36] absolutely check out. Okay so I my name is Annabelle Spencer. Shamika Curvey. We have been research partners for a number of years now. I've been so lucky to be part of this team not only with Shamika but also Dr. Manuel Scott and many many others at school. We did the primary bulk of our research at the Balch Library working also with various federal records. You did most of that.

[01:49:10] Yeah, and I think the way that we structured this was primarily we're doing this to serve a community, right? And so we're telling this history as a family history because it was a family history. And so we traced several different families in Willard and in various other communities.

[01:49:30] And we were able to tie them to space but also talk about the creation of place. and so the land is not just dirt and grass right the land is where you have your children the land is what you pass down to your children it's what you work it's how you feed yourself it's all of these things and so that was our guiding mission is that yes we're looking at land and yes we're looking at the named places of the community but we're more interested in what was it like to be in the space and how did the people in these communities navigate systems that were not set

[01:50:06] up for them and were often set up antagonistic towards them. I'll just add that it's been a very interesting journey. A lot of the black families that have existed in Loudoun County have been here for hundreds of years and seeing those families and how they connect not just in their local areas but also across communities and black communities in and outside of the county was very remarkable for me as someone that's not native to Virginia or to Loudoun County.

[01:50:40] And so it's been an honor and a pleasure to be a steward of this history and I'm thankful to be here. So, and Mr. Sainz, you might know this answer too. So thank you for all this work you did in telling the story that had not been told.

[01:50:57] What happened to the people who were living there when Dulles Airport, when that land was identified to be Dulles Airport? What happened to them where they go, where their stories go, where their legacies go? But what happened to the actual human beings who lived in that African-American community?

[01:51:15] Briefly, they're here. They're here. They disperse, but they also remain connected. They went to other black communities. They continue to tell their stories, even if their stories have not been a part of

the traditional Loudoun narrative.

[01:51:34] And so that is the work that our students are doing. And I want to note that, Ms. Brisbane, we have to tell the hard stories. And we have to tell the stories about people who are harmed. And that is our work as historians, but that is also the work of all of us.

[01:51:52] Okay, to the ladies of Sigma Gamma Rho, welcome to Lewin County. Thank you for founding here. Who would like to speak? Hi, I am Dr. Dietrich Wallace. I am the inaugural anti-baselist. Our baselist could not be here this evening, but she does send her thanks.

[01:52:12] and she is thankful that you took time to recognize us, and we do appreciate it, and we are excited to be here, and we're excited to make loud and greater. Definitely. Would you ladies like to speak?

[01:52:29] Okay. We are excited that you're here, and so now we've got one more to get here. Everyone's here by IOTA. Everybody else is here. We're working on IOTA, and all nine of nine will be here, so it's going to be great. Travis, hello. Oh, so you're here for Attorney General Jones, who couldn't make it, and you live in Loudoun County.

[01:52:50] Wait, wait, wait, wait. Oh, man. I basically live here. It's my second time. Okay, there you go. You got married here. We'll take it. Attorney General Jones couldn't be here today, but thank you for coming. Would you tell what your position is and anything you think he'd like us to know?

[01:53:08] Hi, everyone. My name is Travis Stemhard. I am Deputy Attorney General for Commerce and Infrastructure in the Office of the Attorney General. Attorney General Jones is grateful and sorry that he could not attend today. It is not lost on him being the first African-American elected to the role as attorney general.

[01:53:32] And, you know, myself as well as the attorney general and the whole team are excited to get to work on a whole host of issues that will work to improve the lives of not just African-Americans, but Virginians en masse.

[01:53:48] And affordable housing, civil rights is a big issue of his, consumer protection. And today, he has expressed his honor to have been honored in that way. And I'm honored to be here representing him.

[01:54:06] I would say that history has nothing to do with policy or politics. Nothing at all. When Winsome Sears became the first African-American female to be lieutenant governor, when Justin Fairfax would put them in the resolution, Ms. Sears' husband came up.

[01:54:22] And so history is history, and we're going to always put them in there no matter who that is about. So that's for sure. All right, Douglas, Mr. Avery. Hello, sir. I just want to say that I'm just always encouraged, and I am Charles Avery.

[01:54:43] I'm the president of the Loudoun-Douglas Alumni Association. We've been around for a minute, and we'll continue to be around to reach out to those families who attended Douglas and are in the area. It's interesting how folks don't move far from this space.

[01:54:59] Let me call out the name of Middleburg, Virginia, which is in Loudoun County where I grew up, and I'm a child of Loudoun County, and now I'm back in Loudoun County living here. So it's great to be here. It's great to be president of the Loudoun Delegates Alumni Association and able to reach out to those alumni.

[01:55:24] He gave me the mic. I did my presentation already. Thank you, Jay Randall, for giving me the opportunity to stand here. The one thing I will say is one of the charges that I have placed on myself is I want all of the people around Loudoun County to be able to see themselves in public safety.

[01:55:49] right we have a very diverse workforce um i had an opportunity to go to a career fair and i didn't know what a physicist was so outside of watching the big bang theory i did not know what what they did but sitting on this panel for the career fair i got to talk to someone touch something like so that's what you do so i want to make sure that all the little boys and girls all the grown-ups that uh see public safety in their future particularly fire and rescue that they're able to go hey i know that person i see that person they look like me they talk like me they're from my community. They're from my ground. And that's an additional opportunity. Loudoun County Fire

[01:56:26] Rescue treats its firefighters very, very well. So there's also lots of economic opportunity for folks if they choose fire and rescue. I'm overwhelmed and I'm just full today.

[01:56:44] This is just a wonderful event to show our history, to show what we have done in this county in this country and you know we have our voice here we have our local voice and I'm so glad we are here to let folks know that we have done a lot of things in this county and thank you Mr. Avery for talking about what has been going on within high school at Douglas and you said you graduated

[01:57:17] in 1968. I think I was a toddler back then. So it's just wonderful that you are here to tell that story. And I just want everyone to know that keep telling your story. Don't let someone diminish our history because our history is rich. Thank you. Thank you. And I'll kind of piggyback off of Supervisor Glass. Thank you all for your efforts and what you're doing and will continue to do, and to the students at George Mason, Dr. Wendy, Donna, thank you for all your work

[01:57:55] on this project, and we had a lot of hard meetings, and I won't name names or anything, but we had some roadblocks that's kind of ended some of our stuff, our initiative that we were trying to do, but I'll just say that we stopped what we were doing at one point because folks were trying to whitewash and we said no we got up and left from the table and this would have been able to tell the story a lot further but unfortunately we had to make the

[01:58:34] hard but right decision to get up and leave that table and we found another means put it the information on the website on the county website so if you have not visited please go do so the folks in the back for our media companies please please cover this and put the information on your on your sites and in your paper um there because of our efforts i don't know if anybody's seen this or the students on instagram there's been several different uh reels and stories covering uh you know the information about the the village of willowford because of the information that we put

[01:59:09] out there so uh so good job on that um if you add up all the different you know sites and instagram reels i'm sure there's been millions of people have seen this information now so so congratulations on your efforts and continue to do the good hard work that you've been doing, telling these stories. And Chair Renner, you ask the question, where do these people go?

[01:59:26] Once the government decided to pretty much kick people off their land and their property, a lot of folks moved out to the village of St. Louis, Middleburg, and Percival, and other places around the county and out in West Virginia and Herndon and Reston and so on. And we have descendants to this day that are still living in Loudoun County.

[01:59:44] We have descendants that attended Douglas High School and still here. So we're seeing full circle all those folks that were living there. And I'll just leave with this. Just imagine your ancestors taking whatever they had, building their home, thinking it was going to be their forever home, and then the government telling you, nope, we've got to take this land, sorry.

[02:00:06] And by the way, we're going to give you less than what it's truly worth and less than what we're giving your – because there were some white folks that live in the village too. but we're going to give you less than what we're giving the white folks. So just imagine that. So continue doing the hard things, and, you know, black history is American history.

[02:00:25] Thank you. Good evening. I'm so glad to be here as the president of the NAACP Loudon Branch. I'm excited about this proclamation this year, unlike any other year before.

[02:00:41] I think we've done it more than a decade now. Okay, so we're almost at two, right? Before that, we've been here for 10 years. Yeah, it's a decade. But this year feels very different.

[02:01:00] It doesn't feel, here we go, here we go, math. The chair loves the math. 2008. This feels very different. As a historian and a preservationist, I'm always fascinated about stories.

[02:01:19] But this is the first year that I've ever felt a fight to keep our stories. Nationally, African-American history has been under attack. You even have localities like Pennsylvania, the state of Pennsylvania, that is taking down their black history.

[02:01:36] And on the contrast, you have a Loudoun County who is actually adding to our history. And so we are very, very grateful. Obviously, the proclamation can only hold a few stories. This is only a scratch, a smidgen of all of the history that happens in one year.

[02:01:56] If we wrote it all down, we'll be here to next year. And so we're so grateful. Continue to do the work. I want to commend Chair Randall and this board. I know it is not easy. I cannot imagine the e-mails, the texts, and threats, and everything that you have. But thank you for preserving our history.

[02:02:14] Thank you for fighting to make sure that the teachers can teach history authentically, make sure that our visitors that come to Loudoun, Wendy, has the right information to celebrate black history. Black history in Loudoun sets the tone for American history, American history.

[02:02:33] So thank you so much. Thank you. Well, first of all, thank you, everybody, for being here. If I have not met you yet, it is wonderful to meet you. Mr. Sains, there were and still are so many African American communities, St. Louis, Howardsville, Willard, so many that just did not get talked about at all.

[02:02:53] And really, some of the progress Loudoun was making, some of those communities were being left. And so that's not happening anymore, and the story is being told. Mr. Sains, this is our 10th year on this board. We have been on this board. We're the first. I'm the first person of color to be an elected chair in all of Virginia's history.

[02:03:10] Loudon did that. That's Loudon's history. Loudon did that. And this is our 10th year on this board. It is so true right now that history is being erased. And when I say history, I mean there are places where history belongs.

[02:03:27] History belongs in museums. History belongs in textbooks. History belongs in classrooms. So when you say that it comes out of a museum, if it comes out of a textbook or you can't teach it anymore,

that's just mind-boggling to me. And so there are some things that I've decided that, and I say this almost every day, the best elected officials have to be willing to be an ex-elected official.

[02:03:49] And if telling the history, the full history of Loudoun County means I'll be an ex-elected official, then I will be an ex-elected official because I will not stop telling the full history of Loudoun County because somebody did this for me. I did not get here by myself.

[02:04:06] I stand on shoulders of giants, and it is my job to do that for somebody else, including these two young ladies standing at the end of this, at the end. I do appreciate my board every year for coming with me, for being here. Every single member of the board signed this resolution, every single member.

[02:04:23] No one, no one for any reason said that this wasn't an important resolution to them. There are some boards in some places where that would not happen, but this board in its entirety signed this resolution and celebrates this day with us. I know that, and I want to say to all of you that I appreciate you, and I appreciate that.

[02:04:41] Now we're going to take the best-looking picture you have ever seen in your life. But everyone needs a copy of the resolution. Hold on.

[02:08:38] If I'm not mistaken, we only have one speaker, and then we will go on to our last information item, and we will do our board comments and all those types of things before we go to closed session. So we're not going to be too, too much longer, everybody. the only if i'm not mistaken the only person i see down for um for public comments is mr robert griffin um uh so if anyone else wants to see see the clerk to my left um otherwise mr griffin we're

[02:09:11] ready for you good evening uh thank you madam chair i think you uh forgot to mention the subject that i'm here to speak uh tonight would you like to tell the people here in loudon county you can feel free to tell them you're in your time now yeah well did you tell them the subject no but you can feel free to tell them you're in your time the subject is prior restraint prior

[02:09:48] restraint is the ability or inability of government officials to judge speech before it's actually spoken and the supreme court says that's just not allowed so ms randall cannot prevent me from turning to the audience, as I'm now doing, and welcoming Mr. Griffin, you got one shot on this. I'm going to call you out of order because Ms. Randall, the board has rules of order and we're going to follow the rules of order. The board

[02:10:28] passed that unconstitutionally. That's an unconstitutional law, Madam. Speaking to that, I would like the minutes of that meeting in which the board decided to pass that law. Freedom of information. I would like to know how what discussion was at that meeting madam. It's unconstitutional. I have a right and you have a

[02:10:55] right. I have a right to speak. I have a right to turn to the audience. Supervisors in Loudoun

[02:15:18] County there is something that we passed at the beginning of the year called the rules of order. It's not my rule it's the board's rules of order that we all jointly vote speak to. One of the things we say is that a speaker should not turn around because there was a time when that speaker specifically turned around and talked to, said some pretty inappropriate things to a group of kids that were in the room. And it was just really a not appropriate time.

[02:15:45] So we decided then that the comments to the board are directed to the board or even to the chair. But luckily in this room tonight there were not young people who could be frightened or intimidated, but there have been before. So that is the rule of the boardroom and of the board in general.

[02:16:04] I have over time given that gentleman, I don't even know how many times of warning. And at some point, the warnings just have to stop. The rules of order for the board is you direct your comments to the board. If the board would like to change those rules of order, then the board can, but those are the rules of order for the board at this time.

[02:16:23] So we're going to go on to our last information item, then we will go on and do all the other things before closed session the last information item we have is the real property tax assessment with the staff please come up how are you very good good to see you good to see you i'm trying to figure out what i did wrong to end up last night but the press box wasn't any help in the back either so i'm gonna have to work and i really I'm sorry, everyone, to be honest.

[02:17:02] But here we are. Here we are, exactly. Thank you. You ready? I am ready. Thank you, Madam Chair and members of the board. This is an annual real estate assessment information item that we bring to you. With me are Jim White, my residential real estate assessment deputy, and James Roberts.

[02:17:20] He's my new deputy of commercial real estate, and he's been here for two weeks, so I figured I'd have him here at the table and give us some trouble. meeting. This is his first meeting. Yes, it is. Well, welcome. We had a confab in the back while this was all going on. It's not as exciting as North Carolina. The information today is going to cover year-over-year county-wide magisterial and special tax district information. Both residential and commercial real property values were up over the previous year.

[02:17:53] Residential market is trending to a balanced market, resulting in moderate changes in value, while data centers are up significantly again this year. Property owners will begin receiving their 2026 assessment notices soon. My vendor is supposed to be mailing them out beginning this week.

[02:18:12] The notices this year will contain a QR code that directs users to a Spanish translation of the notice if they wish to use that feature. Values are already available online at [loudon.gov slash parcel](https://loudon.gov/parcel) database.

[02:18:28] You can look up by property address to see what your values are. I encourage property owners to review their property characteristics and sales of similar property. You can go online and see what information we're utilizing to value your property.

[02:18:44] It'll tell us your bathroom count, fireplaces, number of garages, type of construction, effective age, things like that. And the property owner can be in touch with us in case that information is incorrect because we want to make corrections to those values.

[02:19:01] They can also see sales of similar property by clicking the neighborhood sales tab. Property owners who believe their assessments are incorrect can file an application for administrative review with my office until March 16th online at [loudon.gov slash REAA](https://loudon.gov/REAA).

[02:19:20] After that, date appeals can be made to the Board of Equalization by June 1. Notices contain the appraiser's name, phone number, and email address, So the property owners may communicate directly with the appraiser responsible for the valuation of their property.

[02:19:37] They're going to be most familiar with your property. So I encourage property owners to reach out directly with them. The 2026 annual assessment summary, which was emailed to board members this morning, will be posted on my office's website.

[02:19:53] And it will show the values of various types of property, how the values performed. Jim White will cover both the residential and commercial assessment information this year, as he was extremely helpful in overseeing the entire reassessment due to the vacancy in my commercial real estate deputy position.

[02:20:13] And I really appreciate his efforts, so thank you for that, Jim. And then we're happy to answer any questions you might have. We're also happy to meet with you individually if you have questions specific to property in your district. Where does the new guy live?

[02:20:29] Where does he live? He lives in Broadlands. Okay. He lives in Loudoun County. Yes. Good for you. We like you very much. Yes. So, Jim, take it away. Thank you. The first slide here is the countywide taxable real property of Loudoun County.

[02:20:51] The real estate assessed value is effective January 1st of 2026. Changing of slides going on? There we go. James is taking care of that. He's on his job for two weeks. Okay. uh the total real property value for residential and commercial real estate is 185.7 billion this represents a 12.4 percent increase over the prior year which translates to an overall value change of 19.9 billion in assessed value revaluation considers the value of real property without the impact of new construction and new parcels for 2026 the county-wide percent change

[02:21:31] and assessed value is nine and a half percent or additional 5.7 billion. Residential and commercial new construction totaled 3.4 billion of the total residential construction was 1.2 billion and commercial construction was 2.2 billion. When compared to the prior year residential construction did decrease by 25 percent and commercial construction increased by 8.1 percent or 171 million. The net change from the prior year was an overall decrease of 200 million, approximately

[02:22:05] 5.6 percent decline. The value added from new parcels, which is categorized as growth, is 949 million, an overall increase of over a thousand percent when compared to last year. Residential growth decreased by 38 million, however, commercial growth increased by 781 million. The total number of taxable parcels for 2026 is 151,189, which is an increase of 1,262

[02:22:36] parcels. Residential revaluation. This table summarizes the market changes in existing residential property types since 2024. Except for condominiums, all residential categories saw an increase in market value over 2025. However, the market value percent increase was significantly less than that of the previous year for single-family townhouses and condo properties indicating a slowing of market appreciation in the residential real estate market since last year

[02:23:11] residential new construction the table on the left summarizes residential property types and their corresponding construction value along with the change in construction value compared to 2025 in 2026 the construction value for single-family detached properties decrease excuse me decreased by 31.5 percent, townhouses decreased by 24.4 percent, and condominiums decreased by 27.9 percent.

[02:23:44] Additionally, the construction value for single-family detached properties without public utilities also decreased by 26.1 percent. The line graph on the right shows a three-year history of the number of single-family townhouse and condominium units constructed and assessed since 2024. In 2026,

a total of 3,632 units were constructed. However, this represents a 16% decrease of 566 units compared to the prior year. Single-family detached units experienced

[02:24:18] the largest decline, with a decrease of 237 units. Townhouse construction decreased by 143 units, and condominiums experienced a decrease of 187 units. Taxable value change for residential?

[02:24:38] This table summarizes the changes in residential properties for each district showing figures both with and without new construction. It includes the percentage distribution of each district's residential housing stock along with the total taxable residential value. Revaluation for all districts ranges from 0.09% to 2.7% with an average revaluation change of 1.2%.

[02:25:04] The total value change for all districts ranges from 0.17% up to 4.9 percent with the average at 2.46 percent the distribution of value column shows each district's total residential value the value by district column shows each district's ratio of residential value when compared to the total residential value of 102 billion i'm sorry 110 billion value by district percentages range from 7.9 percent in sterling to 19.8 percent in little

[02:25:41] River. These ratios and values reflect various housing characteristics such as the number of parcels, age, size, condition, location, and type of residential development. Although distribution percentages fluctuate yearly, no significant changes were observed for the 2026 reassessment.

[02:26:03] The real property distribution by value. This chart shows the value distribution of all real property classifications in Loudoun County. Although residential property remains the largest category at 55 percent it decreased by three percent from the previous year data centers now the second largest category have increased by three percent to 26 percent all other real property classifications have remained relatively unchanged for the pre from the previous year value allocation by class and district this graph categorizes each district's total value into four groups

[02:26:43] residential multi-family commercial and exempt property residential value remains the main tax base for Little River, Leesburg, Dulles, Catocin, Ashburn, and Nogalkin. As in previous year, Broad Run and Sterling are the only, are the districts where commercial value suppresses residential value. Broad Run's commercial value is \$18.5 billion, which is a 17.8% increase.

[02:27:10] Sterling's commercial value is \$27.9 billion, which is an increase of 37.2%. The increase in these two districts is primarily due to data center revaluation and construction. Broad Run also holds the highest multifamily property value at \$2.1 billion. Little River's residential value is \$22.7 billion, an increase of 3.6% from the prior year. And Dulles District has the

[02:27:37] largest allocation for exempt property at \$2.7 billion. All right. Next slide there. Okay, there is. Is it turning? There should be one more. Ten-year average sale price. Here it goes. This graph summarize the 10-year average of assessed value for existing and newly constructed single-family

[02:28:11] townhouse and condominium properties. Since 2017, the average assessed value has increased approximately 82%. For 2026, the assessed value for existing and newly constructed detached homes increased 1.9% for an average value of \$1,2,700. The assessed value for townhomes increased 1.2% for an average value of \$641,360 and assessed condominium value increased 1.9% for an average

[02:28:43] value of \$447,880. Average sales price and days on market. This table summarizes arms link sales from the local multiple listing service regarding the average sale price, days on market, and number

of units sold. The average days on market has increased slightly for each property type from the previous year, the days on market for single-family detached increased 6.4 days from 17.3

[02:29:14] to 23.7. Townhouse days on market increased 2.5 days from 15.7 to 18.2. Condominium days on market increased 5.4 days from 22.1 to 27.5. While not shown on the table, the average sale price to list price ratio remains high at 99%. 99%? While not shown, do that sentence again please. The list price to close price. Oh, okay. Yeah. Thank you. Well, housing inventory has improved. Inventory

[02:29:54] continues to be low for Loudoun County. As of January 2026, there is approximately a 1.9 month supply of inventory. In real estate, month supply is a measure of how long it would take to sell all homes on the market at the current sales volume. Generally, a five to seven month supply is considered to be a balanced market where neither buyer or seller has the advantage. If the supply exceeds five to seven months, it is considered a buyer's market. Conversely, if a market is below this range, then it's considered a seller's market. And with that, I will just go into commercial.

[02:30:35] County-wide taxable commercial property. This slide compares the year over year commercial value changes from 2024 to 2026. It highlights the total value of commercial property types encompassing existing structures, buildings under construction, and vacant land. Overall the value of all commercial properties rose by 16.5 billion. Vacant land experienced the largest year-over-year change primarily fueled by the demand for industrial zoned land. Data centers experienced

[02:31:07] the next highest value change of 39.4 percent or 14.6 billion in value additionally the multi-family portfolio saw an increase of 542.7 million reflecting a 11.5 percent value change office property experienced a small increase of 0.36 percent following a decline in the previous two years is that real property personal property or both uh real property that's real property Countywide taxable commercial real property this slide geographically illustrates the value

[02:31:47] distribution of all commercial properties in Loudoun County with an overall value of 73.3 billion. Countywide data centers represent approximately 70.8 percent of the total value followed by multi-family at 7.2 percent, flex industrial at 5.6 percent, and retail at five percent. All other commercial categories contribute less than five percent to the total value.

[02:32:13] the general commercial category which was not shown previously may include property types such as gas stations daycares restaurants private schools and automotive facilities data center taxable real property this slide depicts the data center market in loudon from 2021 to 2026 focusing on two key metrics value and square footage the chart includes all data center buildings and land even those not fully completed the bars represent year-over-year growth in total

[02:32:49] valuation. The blue segment of each bar shows the total value from reassessment. The orange segment indicates the value from new construction, and at the very top of the bar is the total value. The white line represents an approximate growth in data center square footage. In 2026, the square footage increased 8% to 53.3 million square feet. The reported square footage is based on the following criteria, that the structure is completed and the square footage is documented and assessed.

[02:33:23] The structure is under construction, and the square footage has been verified and recorded and assessed. Madam Chair, I'm sorry, can we pause for just a moment? Yes. I can't find the presentation, and it's not in our packet. I've been searching in my email.

[02:33:40] Who sent the presentation today? I sent it earlier, too. It came from Mr. White, correct? It came from Mr. White. White? White. It is. Mr. White.

[02:33:55] It is emailed by the commissioner's office, and then we will send it out after the meeting. That's traditionally how we do it for this presentation. Well, Supervisor Umstead has it. No, it did come from Mr. – no, he's saying it came from the commissioner's office this morning, and then it will be emailed to everybody later.

[02:34:13] Mr. White at 9.53 this morning. It was from you, right? Yes. Yeah. James, here, Matt sent it to me. Thank you. Sorry, Madam Chair. I was just – That's okay. That's okay. It's fine. Thank you. Thank you.

[02:34:28] I wanted to send it earlier, but it was getting a lot of reviews. It's fine. That's pretty early, then. That's early for us. Let's see. Which were working? The total data square footage does not exclude approved site plans or permitted buildings that have not started construction.

[02:34:52] And if there is no approved site plans or permits, the parcel is valued as vacant land. From 2021 to 2026, the average increase in data center valuation is 46%. while the average growth in square footage is 15%. Data center expansion in 2026 is primarily driven by ongoing development within the existing data center portfolio, land acquisitions for data centers, and new construction.

[02:35:19] Currently, there are 24 data centers and buildings under construction, adding an additional \$1.13 billion in value for 2026. Data center statistics.

[02:35:37] Here is additional information regarding the growth of data centers and data center land. sales compared to last year. An additional eight parcels, 13 buildings, and 3.9 million square feet was added from the previous year. The sales data presented here for 2026 and 2025 exclude non-market sales or those that could not be verified by the appraiser. The average sale price per acre is 3,762,777, which is 1.4 million per acre higher than the previous year. It is crucial to note that

[02:36:13] But the price per acre for data center properties can vary based on size, yield, whether it's part of an assemblage, and proximity to power at fiber and water.

[02:36:30] Route 28 taxable real property, this slide represents the 2026 valuation of commercial properties within the Route 28 tax district. The dullest airport leaseholds, mainly warehouses and hangers, are included in the flex industrial totals.

[02:36:46] Between 2025 and 2026, the value of commercial real estate in the district increased by \$6.84 billion, or 31%, rising from \$22 billion to \$28.6 billion. The Metro Rail Service District real property, this slide represents the value of commercial properties within the Metro Service District for 2026.

[02:37:15] Between 25 and 26, the value of commercial real estate in the district increased \$4.3 billion, or 17%, rising from \$24.8 billion to \$29.1 billion. And that's it.

[02:37:34] I know this is not you all's wheelhouse, but do you know when the first tax bills go out this year? That we do June 5th. June. Okay, June. I guess that should be earlier. All right, thank you. That was kind of fascinating.

[02:37:51] You've changed me since I've been here. That's pretty fascinating, actually. Do we have questions? Ms. Bricksman. Well, thank you, Madam Chair. Thank you for the presentation. If you look at slide three, it looks like it says, is this just new construction?

[02:38:09] So, in other words, on slide three, we're saying that compared to 2025, the value of new construction of single-family detached went down 31%. Is that the right way to read that? Correct. Okay, and so it carries on the value of new construction of townhomes went down.

[02:38:29] So that's just basically what's been added to the portfolio is that much less than what was added to the portfolio the year before. Correct, and we had fewer units. Okay. Now, it looks like we've really, really slowed in revaluation as far as the increases in the values of people's property.

[02:38:52] I mean, it looks like we're saying that single-family detached only went up just less than 2%? Correct. Okay. And then I was really confused by Class III. It went up almost 10.5%.

[02:39:09] So what is that? It says multifamily Class III went up 10.5% almost. That would be rental apartment. Rental apartments. Okay. Okay. And that is the value of the apartments. This is not the value of the portfolio of apartments, but it's basically if I were to be getting a tax bill in my apartment, which I guess the landlords pay the tax bill, then they can expect, if we are an equalized rate, that their tax bill would go up 10.5%, right?

[02:39:39] That's correct. Okay. Okay. So basically the value of our rental properties are really going up versus the value of our townhomes, single-family detached homes. And then what slide did you have the number of units that it sounds to me like we slowed compared to last year and the number of units we've built?

[02:40:02] On the right-hand side of this, the graph here, is that what we're referring to? We had a decline in the number of units constructed for townhouse, condominium, and single-family compared to last year.

[02:40:19] We're more similar to what we were in 2024. But this doesn't include rentals. Does this include rentals? does this does not include rentals so ownership our portfolio has decreased significantly not the number of units but the number year over year year over year can you give any i know this may not be in your wheelhouse but do you have any can you posit any reason why the number of units for non-rentals would have dropped it's based on what's being constructed and what people are buying And it's based on what we're approving?

[02:40:53] That's correct. And apartments went up because they're based on income. The valuation on rental apartments is based on their income capability. So as the rents go up in apartments, the value of the apartments go up.

[02:41:14] So does that mean the rents have been going up, up, up? Your time is up, up, up. Thank you. Ms. Umstad.

[02:41:24] She'd like a briefing. Okay. Ms. Umstead. Thank you, Madam Chair. I am looking at, I believe it's either page six or page seven. It's the value allocation by class and district. And Leesburg's commercial share looks healthier, larger than it has in the past.

[02:41:56] Do you believe that's attributable to the fact that they now have several data center properties within the town? Absolutely. Okay. All right. Thank you.

[02:42:13] Yes. Mr. Kirshner? Yeah, I just had a quick question, and I can't remember which slide it was, but I noticed that the increase in valuations on Flex Industrial was significantly lower on the commercial slide than perhaps some of the other. I think it was one of the earlier ones.

[02:42:30] know if you can find that or not but do you have any explanation as to why that may be because i know there's a significant demand for lex industrial right now we're pretty low in terms of our vacancies you i would imagine the value would probably be driven up in rents and whatnot but it didn't seem to appear that way from i think it was between four and five percent growth i think it was about five percent four point six three yeah yeah every year the uh appraisers will receive income and expense statements from the property owners they will analyze them and

[02:43:03] update their models on what is the current rate for a stabilized building and while there's been high demand for the land the current existing buildings while there are increases in their rent they have not been exponential and so that's primarily the reason why it's a small increase as compared to other segments makes sense um i just i mean we have a pretty low vacancy rate right now from you know our previous presentations if you go to finance and whatnot so it just doesn't

[02:43:41] do we know if they're i mean most of the flex industrial guys i talked to aren't really developing much anymore so we don't have new a lot of new inventory coming on board so just The economics aren't making a lot of sense to me unless they're going into surrounding counties, and I don't know if you have any additional information to add to that. All right. Thank you.

[02:43:58] Thank you, sir. Mr. Crony. Thank you, Chair Randall, and thank you for the presentation, Mr. Wurtz and the team. So Little River has the most, it looks like, a big percentage of residential, one of the highest.

[02:44:16] Do you know what, how the, do you have like an average of what people can expect regarding their assessed property, how that has increased? I get emails all the time about people concerned about affordability with their increase in assessed value of their properties, you know, their homes.

[02:44:38] Do you have like an average of what it would look like, what it looks like in the Little River District in general, the assessed value increase? this year in 2026 i think little river was similar to the county-wide with about one and a half percent increase in in appreciation um so if the tax rate remains the same as it was prior year it would be a one-to-one there 1.42 i think is what i think for single family right was that is that slide

[02:45:07] three the re the valuation is that right for two 1.42 yeah okay so that's about what okay so it's it's not too bad. The assessment summary that Jim emailed this morning will give you a breakdown by district. Oh great. Okay I haven't had time to read that. Thank you Mr. Wurtz. I'll meet with you too about that if you have any more questions. Yeah thank you. So my other question you said inventory is low in Loudoun County that we have a 1.9 month supply of inventory. Has that changed Or is that what we've been, have we been tracking that way?

[02:45:47] Last year, I think we're around a one-month supply, so it's increased somewhat. It's increased, okay. But still not into what they would consider a balanced market. We would still need to get to a four to five-month supply before we would achieve that.

[02:46:02] Okay. All right. Thank you. Yeah. Yeah. Mr. Turner. Oh, I'm sorry. Mr. Sains. Thank you, Madam Chair. Okay. Make sure I'm understanding right. on slide five yep slide five you have reevaluation is that when and correct me if i'm wrong here is that when folks call get their bill call and say hey can you look at this again for me is that what that's saying or no i'm sorry what was the question which column slide five taxable value residential

[02:46:36] so you have a second column or reevaluation yes okay is that slide five no slide five he's fine he's right no no no um yeah re-evaluation so is that the occurrence when somebody gets their bill and then says hey calls you guys and says hey can you re-look at this again is that is that correct or no that means it's about the same as last year so re-evaluation is just really market change okay so it's not when somebody calls and asks you guys to look at right that's the average there yeah there's some that may be a little higher a little lower than that number but it's on this the average okay for the reason it just sticks out again you know sterling's at 0.09 yeah and

[02:47:14] And everybody else is way higher, so I'll just, you know, elaborate a little bit more on why is that number so low? Well, Broad Run and Dulles are also below 1%, so. Yeah, but they're not in double digits. No. No. Not even close. Yeah, no.

[02:47:30] You're right. You know, like I said, we review the sales from the prior year, and we make determinations about what the assessed value should be based on those sales. And so there was just not much increase from prior year on the sales that we were at available to us.

[02:47:47] So people weren't paying significantly more for their homes in that district than they were the prior year. Is it just because the home for this is just in general just be naturally more of those homes are just older? Yes. Just a fact.

[02:48:03] But at the same time, as you're saying, the values are still been going up in the district year over year like everybody else. but it's just at a different level compared to everybody else because those homes are newer. All right. Thank you. Thank you. Mr. Turner.

[02:48:19] Thank you, Madam Chair. I want to go back to the question Supervisor Armstrong asked, which I think was on slide five, the value by district. And I think what she asked was the value by district in Leesburg, has it gone up substantially, and was that due to data centers?

[02:48:35] And you said absolutely. Am I reading that correctly, that that 11.2 percent increase in value, as you're suggesting, is because of the data centers in Leesburg District? Which slide is that percentage on that you're referring to? Slide five, value by district.

[02:48:51] That's residential. Right. But I thought her question was the residential value has gone up substantially. Is that because there are data centers now in that district? No, I was understanding that it was value allocation by class and district, slide seven.

[02:49:08] Okay. Was that the question? That's correct. My question regarded the commercial sector only. Okay, got it. All right. The only question I have is, is there some reason that we can't get these numbers as part of the item well before the meeting?

[02:49:26] Because trying to absorb this and ask intelligent questions is really hard on the fly. We will make our best effort. It's always a challenge for us. We're trying to get values finalized data to the vendors so that they can put them on the notice. So yes, I will do my utmost best to get that to you in advance so you can analyze that information.

[02:49:46] - Thank you. - The only question I have is the same question I have, I think every year, first of all, thank you. This is really interesting, so thank you. If a person does have issues with their assessments and that person may not have computer, may not have those type of thing, how do they make, how would they know to make a complaint?

[02:50:06] Not a complaint, but to challenge the assessment. How would they know to challenge the assessment? Because everything is, almost everything is, yes, how would they know to challenge it? Well, they can call us if they have a phone. But they have to know to call. Oh, yeah.

[02:50:24] They have to know to call you. I mean, so how else do they receive this? They're going to get a notice in the mail that tells them about the change in value of their property year over year and information about how to reach us if they have questions about the notice and questions about their value.

[02:50:53] We do this dance every year, you and I, because we know that there was a person who didn't have the reading ability to know what to do. Right. Do you have a recommendation about how to deal with that situation? Well, no, and I'm not sure it's up to me to have that recommendation, Mr. Wurz. You were asking the question, so maybe you had an idea.

[02:51:10] I'm asking the question, and I would really appreciate if you do not cut me off in the middle of my time. I don't have an idea, but I have asked this question every year. I don't know that it's my position that are up to me to have the idea. I do think if somebody either can't read or doesn't have the computer equipment to challenge the assessment, this is a question I've been asking for, I don't know, about five years straight now.

[02:51:34] And so I will keep asking it until I get an answer, and I haven't got an answer yet. Okay. Thank you. All right, anybody else? All right, thank you very much. Thank you. Have a good evening. All right. Supervisors, let's go to Borg -- well, let's do everything at once.

[02:51:54] Let's do Borg comments and let's do disclosures and let's do -- what do you call it? Yes. Nominations. Let's do all three of them all at once.

[02:52:10] And so let's not start their time until they've done their nominations and then do disclosures in the Newport Cummins. Ms. Glass, I know you're trying to get out of here. Thank you, Madam Chair. And there's a reason why I'm kind of trying to get out of here early. My first is nomination. I nominate Ms. Emily Johnson to serve as the broad-run district representative on the Heritage Commission. I have a couple of disclosures on Wednesday, January 21st. My staff spoke with

[02:52:44] representatives to discuss the Pantovic application. On Tuesday, January 27th, my staff met with representatives to discuss Dulles North 3. And also, Chair Randall, I have someone in my family that has a birthday today as well, and that's my husband, Alan. He is 25 again. And he looks it.

[02:53:07] it looks every bit 25 again thank you no comments today no no more comments no board comments okay um miss brixman thank you madam chair i do have two nominations i nominate um susan betts as the at-large representative on the parks recreation and open space board i also nominate eric woodall as one of the at-large members of the Nova Parks Board.

[02:53:40] I do not have disclosures. I had the pleasure of joining Ms. Glass and actually Mayor Burke for the kickoff for Black History Month at the Sterling United Methodist Church where they rang the bell 13 times in honor of the 13th Amendment. We were joined by Queen Mother Dr. E. Faye Williams and Mr. Stephen Williams who heads up the National Juneteenth Observance Foundation.

[02:54:04] Their comments really brought home the need for all of us to stand up right now and honor those who stood up before us, but also stand up now against tyranny, erasure, like we just talked about, black history erasure, the unconstitutionality of actions from this current administration, from arresting

journalists to defying court orders to decimating and destroying our institutions and buildings to murdering observers and those practicing their First Amendment rights. We're not even sure if they support the Second Amendment

[02:54:39] anymore, which used to be sort of a foundational thing for the Republican Party. As we speak today, this administration is looking to purchase warehouses all across the country to use as ICE detention centers, basically concentration camps, that would house hundreds of thousands of detainees who we know not of their crimes specifically, which I talked a little bit about in my last board comments. Hanover County, Virginia, in deep red, Virginia, just recently

[02:55:12] turned down or stopped a purchase of a warehouse there where they wanted to house detainees for the Department of Homeland Security and ICE. I just want to say that, really, we are the ones that are going to save us, and now is the time.

[02:55:31] If you're going to even think about standing up or saying something, you need to do it now, and waiting until November to vote may be too late. By way of the Gun Violence Archive, as we are just in the second month of the year, We've had 1,065 total gun deaths, 28 mass shootings.

[02:55:53] The deaths include 14 children under the age of 12 and 77 children ages 12 to 17. Thank you, Madam Chair. No, Ms. Brixman, I've known Steve Williams. He's lived around the corner from me in Denver. He grew up around the corner from me. Yep, he knows everybody.

[02:56:08] I know he's known my whole family for years and years. Excuse me, Mr. Crony. Thank you, Chair Randall. By way of disclosures, on January 23rd, I met with Amanda Williams, Jeff Snow, David Lucey, and Kevin Gunderson of Digital Realty.

[02:56:27] On February 2nd, a member of my staff attended the pre-meeting for the Callahan Agricultural Building. All right. I know many of you have experienced frustration with the condition of subroads, and I completely understand those concerns.

[02:56:43] VDOT crews are responsible for more than 14,300 lane miles of roadway. including nearly 17,000 neighborhood streets. We appreciate the hard work of these crews and I appreciate everyone's continued patience as they work to finish clearing roads in our region.

[02:57:01] Yesterday afternoon, a tragic accident occurred on Route 7 at Blue Ridge Mountain Road in Bluemont, involving a commercial snowplow and a pickup truck. Tragically, the snowplow driver lost their life in the line of duty while working to keep our roads safe.

[02:57:17] I extend my deepest condolences to the driver's family and loved ones. Please keep all those affected by this heartbreaking loss in your thoughts. I will be hosting a community meeting on February 25th at 6.30 p.m. at Brambleton Corner Clubhouse about traffic safety concerns on Olympia Drive.

[02:57:40] residents have been concerned about speeding for many years because Olympia Drive is used as a cut-through from the town center. And last year, unfortunately, there was a fatality on that road. The Loudoun County Sheriff's Office, the Department of Transportation, and the Brambleton developer will be joining me at this meeting so we can work towards a solution for the residents.

[02:58:07] we'll be looking at traffic calming and other safety improvements to olympia drive thank you thank you very much miss umstep thank you madam chair um disclosures on the 27th of january i met with um digital realty kevin gunderson david lucy and jeff snow on february 2nd i met with

[02:58:41] representatives of Dulles North 3 Colleen Gillis Bill Junda and Ben Wales um I would like to mention that January 27th was International Holocaust Remembrance Day, the 81st anniversary of the liberation of Auschwitz-Birkenau. So to our Jewish community, thank you for being part of

[02:59:13] part of that remembrance. And may you all be blessed. I would like to also mention something that Chair Randall brought up earlier, which is the number of African American heroes in Loudoun County and Leesburg. Many of our residents who fought for civil rights back in the 40s, 50s,

[02:59:52] and 60s still live in Leesburg and are still active members of their community. You saw Mr. Charles Avery tonight from the Loudoun Dulles Alumni Association, but some of the names Chair Randall mentioned like Mary Randolph and Gert Evans and Luetta Watkins and the Perrys and the Roberts families all played a huge role in trying to make Leesburg a better place for all its

[03:00:30] residents so just my my admiration goes out to those folks and that's all I have. Let's see Mr. Kirshner. Thank you Madam Chair just a couple of comments first of all disclosures January 22nd my staff met with my staff and I met with applicants for R&D baseball special events permit that's the extent of the disclosures for this meeting. First in terms of comments I think it's good to see all the supervisors here. I wasn't sure if everyone was going to survive the deep

[03:01:04] freeze of 2026. It certainly has felt that way. It's been pretty cold. So I know a lot of the ag businesses, including my little sheep industry, has been suffering through the snow. The animals are doing okay. And lambing is well underway and almost completed. So for those of you who are fighting this cold, I think there was some relief on the way. We're looking forward to that.

[03:01:28] In terms of a few events going on in Catoctin coming up, the Loudoun County Brewers Association is holding its second annual Loudoun Beer Awards tomorrow night at Lark Brewing Company in Aldi. And I believe that the ticket sales end tonight, so if you would like to go to that, if you're interested, you better get those quickly.

[03:01:47] The Lockett's Bluegrass has announced they're continuing at the old Lockett's Schoolhouse on Saturday nights. They'll host the P.O. Ramblin' Boys on February 14th and the Cody Norris Show on February 21st and the Big Country Bluegrass on February 28th. And then the Waterford Craft Show is offering a paid one-day class on tablet weaving.

[03:02:07] So I'm sure Chair Randall will be out there doing some tablet weaving on February 21st and another paid class on disc theft spinning on February 22nd. That is the news from Catoctin. Thank you, Madam Chair. Actually, I think some of those weaved baskets are pretty cool, to be honest, and beautiful.

[03:02:24] And, yeah, I have a few of them in my house that I bought from the water for fear. Mr. Letourneau. Thank you, Madam Chair. All right, let's talk about snow and ice. Obviously, we've had a very challenging storm.

[03:02:41] I know that many residents are very frustrated with the cleanup and how long it took and then all the issues that have emerged this week with schools back in session. I know my office, and I'm sure many others, have worked very hard to try to get resources where they were needed.

[03:03:00] I would like to thank our VDOT liaisons, who I felt like I was talking to at every hour of the day during the storm and continue to, as well as all of the now county employees, school employees that are out there still trying to improve the situation.

[03:03:18] As I've been trying to explain to residents, VDOT itself has relatively limited resources. So when we talk about VDOT clearing roads, what we really mean is a whole slew of contractors that they bring in, many of which are landscape contractors, some of whom are not exactly well experienced in snow, which I've had some personal interactions with to confirm.

[03:03:40] So that means that the quality and consistency really has a very, very wide variance, which can be very frustrating to residents. I will say in my 14 years on the board I'm not sure that I've ever encountered a weather event in which more streets were just flat-out missed and I say that in that literally in a inside of a neighborhood one street two street and then the third street isn't touched and then the fourth streets plowed and that's frustrating and so we've had communication with VDOT about that and I really hope that we can have at the staff level and even with the board some engagement with them going forward on on contract enforcement and making sure that contractors are doing what they can.

[03:04:20] That said, this really has been an unprecedented weather event because not only did we have a full day worth of sleep, we then had a solid week of sub-freezing temperatures. And the reality is, as somebody who's from Massachusetts, and I know the chair being from Denver, has experience with this, the amount of equipment and personnel that it would take to really be able to deal with a snow event like this effectively and then maintain is just not feasible for a jurisdiction like this or an area like this that gets these, this is probably a once in every five or ten years event.

[03:05:00] You know, some years we don't really have any snow. My kids are complaining. So, you know, we have to have that mindset. And I, you know, but having a lot of interactions with residents on social media, trying to remind them that like i understand but at the same time you're frustrated with government but you don't want to know what it would take for there to be a better response lots of money and and it most of the time it would be for a whole lot of stuff that's sitting idle so we do have to have that patience but i do appreciate everybody and we continue to try to do the best we can to get

[03:05:30] things uh improved out there thank you um mr sanes thank you madam chair i'll start And I missed some from last week, so last meeting, so I'm going to kind of go back in time here a little bit.

[03:05:51] On January 7th, my staff met with the representatives of the Commonwealth Center Motor Club application. On January 14th, my staff met with the applicants for the Village at Clear Springs proffer amendment application.

[03:06:08] And on January 28th, my staff and I met with the representatives for the Dulles North 3 application. Nominations. Let's see here. I'd like to nominate Steve Schulte for reappointment as a residential builder developer multifamily representative on the Affordable Dwelling Unit Advisory Board.

[03:06:31] I'd like to nominate Charles Clear for reappointment as the at-large representative on the Affordable Dwelling Unit Advisory Board. And yeah, in regards to the snow event we had, thank you to the county staff and LCPS staff working together to clear some of the sidewalks for our students to get to their proper schools, you know, to do their education.

[03:06:58] Thank you to neighbors who went out and helped their neighbors, their elder, the senior neighbors, those who might have a disability in your neighborhood to help dig them out. As is mentioned before, yes, We had a lot of issues with VDOT. And again, to remind folks, VDOT takes care of the streets and not Loudoun County.

[03:07:18] A lot of people get that mixed up. So I just want to, again, iterate that. And we have heard from VDOT that a lot of the contractors, well, I shouldn't say a lot, but some of the contractors didn't even show up to work that were hired to do the job.

[03:07:34] So that's something they need to address. Some of the contractors that were hired showed up with not very good equipment to do the job. So, again, that's something VDOT needs to discuss. And we've all talked to different VDOT representatives throughout the last week, and we'll continue to talk with them and hopefully have a bigger debriefing and conversation on what can we do better in the next snowstorm or ice event that we have.

[03:08:00] Because you see videos from, obviously, it's Canada, Philadelphia, and other places, and they are just doing great work. I sit there and watch these videos and I'm like, well, why can't we have this? So I talked about that with one of the VDOT reps the other day, and they said, yep, let's have a further conversation, supervisor is saying.

[03:08:16] So I'll be glad to have that conversation. And then in regards to the snow, we received emails, which is great. Thank you to the residents. Love getting emails, asking for help, assistance. That's why we're here to serve our community.

[03:08:31] so i'm going to read one that i received from mr mark wolf i've lived most of my life here in sterling virginia i've been through many snow storms much worse than this last one january 25th i must say the plan you have directed in this in this event is the biggest failure i've ever witnessed one lane clearing through neighborhoods you're an idiot loudon county surely has the resources and equipment to handle six to eight inches of snow well again as i said vdot handles some snow. Tell you what, why don't you let experienced grown-ass white men handle these

[03:09:06] technical things? When the sky rains down sand, then maybe we can ask advice from the likes of you in your tribe, Karan. What a dismal failure. You're fired. Well, Mr. Barkwolf, again, VDOT takes care of the roads, not Loudoun. Thank you. Mr. Sands and I both have received racially tinged comments over the past couple of weeks um but thank you for that okay well not thank you for

[03:09:40] that but you know all right i do want to i have one disclosure um i'm sorry mr mr turner thank you i'm sorry um i nominate reed clark to the heritage commission to fill the ashburn district seat on tuesday february 3rd 2026 i met with amanda williams and kevin gunderson from cooley to discuss the application for digital dulles um i was i was pretty perplexed this was my so storm first snowstorm as a supervisor a lot of the comments have already been said a couple of things that I noted I'm sure that VDOT was being peppered by all of us for for roads that were

[03:10:19] absolutely urgent in their district and I'm sure VDOT was doing the best to try and accommodate those I will say that when county staff established a matrix whereby we the district supervisor could advise them of roads that urgently needed clearance and they put those in the matrix and then the county staff communicated with VDOT. I thought that worked very well from my perception because it focuses everybody's comments in a more systematized way. To echo Supervisor Laterno's comments, this was a very weird storm. In fact, I don't remember one quite

[03:10:54] this weird anywhere and I was in the Arctic for a long time. But seven inches followed by all day of sleep followed by a hard freeze for seven to ten days is just a very weird confluence of events. I will say, and this is my opinion, the county administrator commented on this in his comments, but this is, and

this is a follow-on to cooperation between the LCPS, the schools, and county we've all got limited resources but my opinion is before the school system lcps

[03:11:29] opens schools i think they ought to have and do an inventory of the walk zones around those schools to ensure that walking is still possible and i want to really reiterate the county administrators and comment and also that went out publicly it is the obligation of private landowners to clear their own sidewalks we got to remember that you need to clear your own sidewalk um but the schools before they opened i mean we went through covid with virtual school for a long time and i think before the schools say okay school's back in session they've got an obligation to inventory walk paths in the walking zone to make sure the kids can walk because we

[03:12:09] had a lot of instances in this storm of kids walking out on narrow streets that were that were clear but there was nowhere else for them to walk and that's just a dangerous situation I totally agree with the comments earlier on this that we have to have in the military. We called an after-action conference, and I think we do.

[03:12:26] But I think there's some important lessons to learn. But, again, to Supervisal Duterno's point, this was a very, very unusual storm, confluence of events. And so let's try and take that into consideration. Thank you. Thank you.

[03:12:42] I have three disclosures from my staff. January 16th, Dulles North 3, January 20th, Village at Clear Springs Proctor Amendment, Amendment in January 12th Commonwealth Center. Today happens to be the anniversary, February 3rd, 1870, of the 15th Amendment, which granted black man the right to vote that was ratified on this day.

[03:13:06] It said that the Constitution prohibits the federal government and states from denying or abridging a citizen's right to vote based on race, color, or previous conditions of servitude. Now, of course, we do know that as for African-American men, and we do know that just because that was passed in 1870 did not mean that African-American men freely were able to vote.

[03:13:29] There were poll taxes and other things that happened for years. We know that. But the point I want to make is this. Of all the things we talk about of policy and politics, one of the most sacred things we have in this country is the right to vote.

[03:13:46] And the Constitution actually gives the right to conduct voting to the states. This week, I think it's actually Article 1, Section 4, that the times, places, and manner of elections shall be prescribed by each state legislator thereof.

[03:14:10] This week, President Trump said that he believes, and this is a quote, Republicans should nationalize the voting. The Republicans should say they want to take over, they should take over the voting and the voting in at least 15 places.

[03:14:27] The Republicans should nationalize the voting. Of all the things that makes this country the amazing country it is, is the right to vote. And for the President of the United States to discuss or talk about in any ways that not only should we nationalize voting, which belongs to the state, but it should be done by one particular party.

[03:14:50] I will tell you that there are millions, countless people who have fought and died for this right to vote. They have had dogs set up on them. They have been beat. They have been shot. The right to vote is

sacrosanct.

[03:15:06] And of all the things and all the times that I may agree or disagree, I don't know if I agree very much with this administration, the time that you will bring people up and out and be ready to take to the streets to protect is our right to vote.

[03:15:25] Donald Trump is doing this because he cannot get over the fact that he lost the election in 2020 to Joe Biden. He lost. He lost Colorado. He lost Minnesota. He lost Arizona. He lost Georgia. He lost the popular vote. He lost the electoral college.

[03:15:40] He lost. I've lost elections. It's hard to lose. Get over it. But the discussion of nationalizing an election and giving it to one party because you lost, every American, every American should be concerned about those statements from this president.

[03:15:58] We have closed session. Let's take—we haven't had a break. Let's take—because we can't take one. Let's take—no, let's take 10 minutes and then come back and read in the closed session.

[03:16:10] Okay, everybody come back to the dais, please. We're going to get read in the closed session.

[03:24:34] I have no idea. Would everyone come back to the dais, please? Thank you, thank you, thank you. Except Ms. Glass, who's left. Okay, Mr. Turner, Vice Chair Turner, would you please read us in the closed session?

[03:24:55] I move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.23711A3 of the Code of Virginia to consider the acquisition of a parcel of property for public use in the Dulles Election District. Is there a second? Second from Supervisor Letourneau. Discussion on the motion? Hearing none, all people say aye. Aye. Any opposed? That motion will pass 8-0-1 with Supervisor

[03:25:24] Glass being off the dais now. We're in closed session. Okay, everybody, we are back. I want

[03:54:13] to remind everyone that Ms. Glass left before we did read into closed session, so she didn't to be there for that. Mr. Turner would you please read us out of closed session. I move the closed session be adjourned that the Board of Supervisors reconvenes its public meeting that the minutes of the public meeting should reflect that no formal action was taken in the closed session and further move that the resolution certifying the closed session be adopted and reflected in the minutes of the public meeting. Second. Motion made and seconded by Supervisor Sainz. Discussion on that motion. All in favor say aye. Aye. Any opposed? That motion will pass 801. Will everyone please

[03:54:47] affirm. Affirm. Affirm. Affirm. Affirm. Affirm. Affirm. Affirm. Affirm. And I affirm as well. There is not a motion at a closed session, right? There was not? I didn't think so. All right, then. I think that is it for everyone, and I believe with that we are adjourned.



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